From: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: Follow-up on Outstanding Payments & Invoices
To: "Michelle Morgan" <michelle@teachaway.com>
CC:"Michael Cassidy" <michael.cassidy@utoronto.ca>
Sent: Fri, 31 Jan 2025 13:22:08 -0500 (Fri, 31 Jan 2025 18:22:08 GMT)

Dear Michelle,

I trust this email finds you well.

I am following up on my previous email from November 27, 2024, regarding the following overdue payments:

Invoice #	*Date*	*Project*	*Amount*	*Paid Date*
K17-11-461	18-Apr-23	TEFL Postage Recovery Sep 2022 - Feb 2023 CAD	$ 2,475.84	overdue 181 days
K17-490	1-Jun-24	TEFL Online royalties March-May 2024 CAD	$ 75,255.92	overdue 91 days
K17-494	31-Aug-24	TEFL Online royalties June - August 2024 CAD	$ 65,203.71	overdue 91 days
		Total Outstanding Amount:	$ 142,935.47	
due December		TEFL Online royalties September 2024 - November 2024 CAD	report unsubmitted	unpaid

Additionally, as highlighted in blue in the above table, the quarterly report for September to November 2024 (due in December) has not yet been submitted. As a result, a fourth invoice is pending issuance.

Kindly provide an update on the status of these payments by February 11. Let me know if a meeting would be beneficial to discuss this further or clarify any questions.

Your prompt attention to this matter would be greatly appreciated.
Thank you,
Hanadi

DEFY GRAVITY

HANADI ABDULLAH

Senior Program Manager

OISE Continuing &

Professional Learning

University of Toronto

252 Bloor St West

Toronto, ON, M5S 1V6

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

cpl.oise.utoronto.ca



UNIVERSITY OF TORONTO
OISE | ONTARIO INSTITUTE
FOR STUDIES IN EDUCATION

Continuing & Professional Learning



From: Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Update/ Fw: [External] Fwd: Follow-up on Outstanding Payments & Invoices
To: "Elisabeth Rees-Johnstone" <e.rees.johnstone@utoronto.ca> "Michael Cassidy" <michael.cassidy@utoronto.ca>
Sent: Thu, 13 Feb 2025 12:46:29 -0500 (Thu, 13 Feb 2025 17:46:29 GMT)
Attachment 1: Checkout - OISE University of Toronto TEFL Certification 20250213.pdf

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FYI
Enrollment still open as of February 13, 2025

Thank you!

Maggie

MAGGIE XU M.Eng, CPA, CMA
Senior Financial Analyst
Continuing & Professional Learning
Office: 416-978-2154
m.xu@utoronto.ca

From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Thursday, February 13, 2025 11:25 AM
To: Michael Cassidy <michael.cassidy@utoronto.ca>
Cc: Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Update/ Fw: [External] Fwd: Follow-up on Outstanding Payments & Invoices

PowerSchool Canada ULC	4529 Melrose Street, Port Alberni, BC, V9Y 1K7, Canada	1,886.24
University of Toronto	215 Huron Street, 2nd Floor, Toronto, ON, M5S 1A2, Canada	140,520.54
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	4,328.62
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	28,164.37
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	25,270.20

I can see in the attached that we're listed as a creditor with the amount of 140,520.54. And I see by Pluribus's message that UofT was advised of this on Dec 20 2024. Might we know why we were we not advised by UofT of this notice? Who's accountable on the UofT side to inform us?

Understanding payment/creditor protection is a key consideration of course, but also what is the status of incoming enrolments and our program risk and learner needs?

It would be helpful to list our areas of inquiry prior to any call with the President of Pluribus. And obviously, this changes our planned communications that we are prepping with our legal counsel.

Thanks!
Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Michael Cassidy <michael.cassidy@utoronto.ca>
Date: Thursday, February 13, 2025 at 10:01 AM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Cc: Maggie Xu <m.xu@utoronto.ca>
Subject: Kesson Group Update/ Fw: [External] Fwd: Follow-up on Outstanding Payments & Invoices

Dear ERJ, I have heard from the President of Pluribus – see email below and attachments.

In short, it appears that Pluribus has received protection from "Creditors" while they restructure and attempt to reorganize their businesses. What we have here is based on the CCAA – Companies Creditors Arrangement Act. From what I can tell we have to wait until 15 March 2025 to hear from Diane as to whether she is able to pay or not pay what is owed to us.

So! It appears that we are now liaising directly with Diane Pedriera, Founder of Pluribus and President. It appears that she is the only one with her finance lead left to operate Pluribus based on her website reveal and the fact that we're not receiving news back from her employees directly (no doubt they are now listed on the company creditors list too).

Diane has suggested/ offered to discuss further… and in subsequent email (after this one) has shared that she would be open to explaining her situation further – today or tomorrow:

- 12-12:30pm Thursday, and between 11am-1pm open on Friday.

Would you be open to talking to her? I think it is wise to take up her offer to listen to her commitment to pay the invoices outstanding. I also think that it is a useful primer for our contract conclusion.

Your thoughts?

MICHAEL CASSIDY
Associate Director

Continuing & Professional Learning

Ontario Institute for Studies In Education
University of Toronto

Michael.Cassidy@utoronto.ca
[redacted]

From: Diane Pedreira <diane@pluribustechnologies.com>
Sent: Wednesday, February 12, 2025 4:43 PM
To: Michael Cassidy <michael.cassidy@utoronto.ca>
Cc: Michelle Morgan <michelle@teachaway.com>; Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: RE: [External] Fwd: Follow-up on Outstanding Payments & Invoices

You don't often get email from diane@pluribustechnologies.com. Learn why this is important

Hi Michael,

Apologies as I haven't been able to respond to you sooner.

On December 17th, 2024, Pluribus Technologies Corp. and its subsidiaries, including Kesson Group inc. ("Kesson" and collectively the "Applicants") were granted an Initial Order under the Companies Creditors Arrangement Act (Canada) (the "CCAA"). Pursuant to the Initial Order (a copy is attached for reference), the Court imposed a stay of all proceedings in respect of the Applicants up to and including March 15, 2025. The stay of proceedings applies to any payment for services owing prior to the date of the Initial Order, and all rights and remedies of any persons against any of the Applicants are also stayed and suspended during the Stay Period.

On December 20th, 2024, the University of Toronto (via ar.financialservices@utoronto.ca) was notified by B. Riley Farber acting as Monitor for Pluribus Technologies with the attached Notice to Creditors.

We are in receipt of the invoices stated below requesting payment. We are unable to pay this amount at this time pursuant to the terms of the Initial Order, as the amounts owing under such invoices are pre-filing amounts, which are stayed pursuant to the Initial Order. We note that Kesson intends to make payments to the University of Toronto for royalty amounts owed after the date of the Initial Order in accordance with its terms.

We truly value our partnership with the University of Toronto and appreciate your patience as we work through this process. We remain committed to finding a path forward and are open to discussing any concerns you may have. If you would like to discuss this further, I am happy to set up a call at your convenience.

Best,

Diane Pedreira
President | **s Technologies**
C: [redacted]
E: diane@pluribustechnologies.com | W: pluribustechnologies.com

pluribus
TECHNOLOGIES

Attachment 1



Order summary $2,341.36

🎉 Success! Your 20% discount has been automatically applied. Flexible payment options available in Canada and the USA with Sezzle and Affirm.

OR

Student information

Student email

Email me with news and offers

Delivery

Country/Region
Canada

First name

Last name

Company (optional)

Address

Apartment, suite, etc. (optional)

City

Province
Ontario

Postal code

Phone

Digital delivery

Enter your shipping address to view available shipping methods.

Payment

All transactions are secure and encrypted.

- Credit card VISA AMEX +4
- Use shipping address as billing address
- PayPal
- Affirm - Pay Over Time
- Buy Now, Pay Later with Sezzle

Remember me

- Save my information for a faster checkout with a Shop account

Mobile phone number
+1

Secure and encrypted

Pay Now

Your info will be saved to a Shop account. By continuing, you agree to Shop's Terms of Service and acknowledge the Privacy Policy.

From:	FSD ARIncoming Payments
To:	Maggie Xu
Subject:	RE: Notice Forwarding Request
Date:	April 15, 2025 2:54:53 PM
Attachments:	Pluribus Technologies et al - Notice of CCAA Protection.eml (1.14 MB).msg image001.png image003.png image004.png

Hi Maggie,

We had one in December, see attached.

Accounts Receivable Invoices

Invoices should be submitted to Accounts Receivable, 150 College Street, 3rd Floor Room 350 no later than **Thursday, April 17, 2025**.

For queries pertaining to accounts receivable, email ar.financialservices@utoronto.ca.

**Please note our new address if paying your invoice by cheque:*

150 College Street, 3rd Floor, Room 350
Toronto, Ontario
M5S 3E2

Nataliya Iordakiyeva
Accounts Receivable Administrator
University of Toronto - Financial Services
Fitzgerald Building
150 College Street, 3rd Floor
Toronto, Ontario M5S 3E2

Telephone: 416 978 2073
Email: nataliya.iordakiyeva@utoronto.ca
Accounts Recievable FSD website: www.finance.utoronto.ca

UNIVERSITY OF TORONTO DEFY GRAVITY

From: Maggie Xu <m.xu@utoronto.ca>
Sent: April 15, 2025 2:29 PM

To: FSD ARIncoming Payments <ar.financialservices@utoronto.ca>
Subject: Notice Forwarding Request

Hello AR team,

I am writing to request that any emails and its attachments are received in this inbox from **B. Riley Farber acting as Monitor for Pluribus Technologies**, please kindly forward the message promptly to my attention. We are expecting to receive the Notice to Creditors **on or after April 17, 2025**. The documents are critical for us to make business decision.

Also, I want to confirm if you have received any emails from B. Riley Farber or Pluribus Technologies with the attachment of Notice to Creditors on December 20th, 2024. If you have received this email, please kindly forward it to me.

Thank you for your help.

Best regards,

Maggie

MAGGIE XU M.Eng, CPA, CMA
Senior Financial Analyst

Continuing & Professional Learning
Ontario Institute for Studies in Education
University of Toronto
252 Bloor St West, Room 5-103, Toronto, ON, M5S 1V6

Office: 416-978-2154
m.xu@utoronto.ca

cpl.oise.utoronto.ca

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InnovED

From: Erin Merrick
Subject: Pluribus Technologies et al - Notice of CCAA Protection
Date: December 20, 2024 1:29:47 PM
Attachments: image001.png
image002.png
image003.png
2024-12-20 Pluribus - Notice to Creditors.pdf

> You don't often get email from emerrick@brileyfin.com. Learn why this is important

Hello,

Please see attached notice.

Thank you,
Erin

Erin Merrick, BA
Corporate Insolvency Administrator

Email: emerrick@brileyfin.com
Direct: (NEW!
Mobile: [redacted]

150 York Street, Suite 1600
Toronto, ON, Canada, M5H 3S5

www.brileyfarber.com

PLEASE VISIT <https://brileyfin.com/disclosures/> FOR LEGAL DISCLOSURES.

150 York Street, Suite 1600
Toronto, ON, Canada, M5H 3S5
T: 1.855.775.8777
F: 437.561.7080

December 20, 2024

To: ALL KNOWN CREDITORS

Re: PLURIBUS TECHNOLOGIES CORP., PLURIBUS TECHNOLOGIES CANADA INC., CRESCERE FRAMEWORKS, LLC o/a THE LEARNING NETWORK, LOGICBAY CORPORATION, SKILSURE INC., SKILSURE SOFTWARE LIMITED, ICOM PRODUCTIONS INC., PATHWAYS TRAINING AND ELEARNING INC., KESSON GROUP INC., KESSON GROUP HOLDINGS LIMITED, KESSON GROUP UK LIMITED, KESSON GROUP ALBANIA SHPK., KESSON GROUP SERVICES, INC., PLURIBUS USA INC., SOCIAL5, LLC and KNOWLEDGE STRATEGIES, INC. o/a TORTAL TRAINING (collectively, the "Applicants")

You are receiving this notice because the Applicants list you as a creditor in their books and records.

Take notice that on December 17, 2024, the Ontario Superior Court of Justice (Commercial List) (the "**Court**") made an Order (the "**Initial Order**") (Court File No. CV-24-00733415-00CL) granting the Applicants protection pursuant to *Companies' Creditors Arrangement* Act (the "**CCAA**"). B. Riley Farber Inc. was appointed as monitor (the "**Monitor**").

A copy of the Initial order is available on the Monitor's website at: https://brileyfarber.com/engagements/pluribus-technologies-corp/ (the "**Monitor's Website**")

Pursuant to the Initial Order, there is a stay of proceedings until December 27, 2024 (the "**Stay Period**"), which may be extended by the Court from time to time. The Companies will be seeking an extension of the Stay Period at a hearing scheduled for December 23, 2023 (the "**Comeback Motion**"). A copy of any order issued at the Comeback Motion, along with all other materials filed in the CCAA proceedings from time to time, will be made available on the Monitor's Website.

Please note that during the CCAA proceedings, among other relief provided for in the Initial Order:

- *the Applicants shall remain in possession and control of their current and future assets, undertakings and properties of every nature and kind whatsoever, and wherever situate including all proceeds thereof (the "**Property**");*

- *all persons having oral or written agreements with the Applicants, or statutory or regulatory mandates for the supply of goods and/or services are restrained until further Order of the Court from discontinuing, altering, interfering with or terminating the supply of such goods and services as may be required by the Applicants, provided that the normal process or charges for such goods and services received after the date of the Initial Order are paid by the Applicants in accordance with normal payment practices of the Applicants or such other practices as may be agreed upon by the*

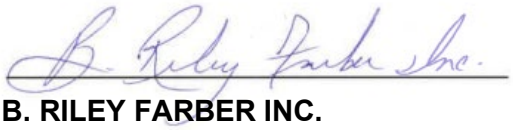
supplier or service provider and each of the Applicants and the Monitor, or as may be ordered by the Court;

- *all parties are prohibited from commencing or continuing legal action against the Applicants and all rights and remedies of any party against or in respect of the Applicants or their assets are stayed and suspended except with the written consent of the Applicants and the Monitor or leave of the Court.*

To date, no claims procedure has been approved by the Court and creditors are not required to file a proof of claim at this time.

The Monitor can be contacted by email at pluribus@brileyfin.com or by telephone at (437) 294-4600.

Yours very truly,



B. RILEY FARBER INC.
IN ITS CAPACITY AS COURT-APPOINTED CCAA MONITOR OF
PLURIBUS TECHNOLOGIES ET AL.

PLURIBUS TECHNOLOGIES CORP., PLURIBUS TECHNOLOGIES CANADA INC., CRESCERE FRAMEWORKS, LLC o/a THE LEARNING NETWORK, LOGICBAY CORPORATION, SKILSURE INC., SKILSURE SOFTWARE LIMITED, ICOM PRODUCTIONS INC., PATHWAYS TRAINING AND ELEARNING INC., KESSON GROUP INC., KESSON GROUP HOLDINGS LIMITED, KESSON GROUP UK LIMITED, KESSON GROUP ALBANIA SHPK., KESSON GROUP SERVICES, INC., PLURIBUS USA INC., SOCIAL5, LLC and KNOWLEDGE STRATEGIES, INC. o/a TORTAL TRAINING (collectively, the "Applicants")

List of Creditors as at December 18, 2024
as submitted by the Applicants
(Unaudited)

Please note the following:
1. This list of creditors has been prepared from information contained in the books and records of Lighthouse Immersive Inc. as at July 24, 2023.
2. The amounts included in this list of creditors may not include all un-invoiced amounts, nor have the amounts been adjusted for any amounts that may also be receivable from creditors.
3. This list of creditors has been prepared without admission as to the liability for, or quantum of, any of the amounts shown.
4. To date, a claims procedure has not been approved by the Court, and the creditors are not required to file a statement of account or proof of claim at this point in time.
5. An amount owing of $1 represents an unknown amount.

PLURIBUS TECHNOLOGIES INC.

CREDITOR NAME	ADDRESS	CAD
2338701 Ontario Inc.	59 Rockridge Dr, Whistler, BC, V8E 0A7, Canada	8,750.00
DORSEY & WHITNEY LLP	701 5th Ave, Suite 6100, Seattle, WA, 98104, USA	2,478.99
MCCARTHY PACIFIC CONSULTING GROUP	1438 Richards Street, Unit 2607, Vancouver, BC, V6Z 3B8, Canada	6,195.34
Menzies LLP	Centrum House, 36 Station Rd, Egham Surrey, TW20 9LF, GB	17,385.87
Miller Thomson LLP	40 King Street West, Suite 5800, Toronto, ON, M5H 3S1, Canada	194,310.06
OurProjects LLC	430 Ridge Lane, Alpine, UT, 84004, USA	16,748.58
PricewaterhouseCoopers LLP	18 York Street, Suite 2600, Toronto, ON, M5J 0B2, Canada	365,943.69
Thornton Grout Finnigan	100 Wellington Street West, Suite 3200, PO Box 329, Toronto, ON, M5K 1K7, Canada	237,175.08
Ernst & Young LLP	100 Adelaide St W, Toronto, ON, M5H 1S3, Canada	527,209.04
KAM Consulting Services Inc.	3314 Merion Gardens, Oakville, ON, L6M 5K9, Canada	144,159.75
CNW Group Ltd.	88 QUEENS QUAY WEST, Suite 3000, Toronto, ON, M5J 0B8, Canada	7,762.23
Concur Technologies, Inc.	601 108th Avenue NE, Suite 1000, Bellevue, WA, 98004, USA	1,941.62
Crown Property Management Inc.	123 Edward Street, Toronto, ON, M5G 1E2, Canada	13,166.96
CT Corporation	P.O. Box 4349, Carol Stream, IL, 60197, USA	1,036.35
Hi Bob Inc	275 7th Ave., Suite 1705, New York, NY, 10001, USA	10,595.80
International Deal Blockchain Inc.	1610 - 777 Dunsmuir St, Vancouver, BC, V7Y 1K4, Canada	15,357.38
Jolera Inc	365 Bloor Street East, Second Floor, Toronto, ON, M4W 3L4, Canada	1,493.31
Insurance Inc.	150 King St West, Suite 2401, Toronto, ON, M5H 1J9, Canada	20,074.74
Computershare Governance Services Limited	100 University Ave, 11th Floor, South Tower, Toronto, ON, M4J 2Y1, Canada	2,689.40
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	8,750.86
Synap Technologies Ltd	3 Manyhorses Park, Redwood Meadows, AB, T3Z 1A2, Canada	9,416.67
TOTAL		**$ 1,612,641.72**

ICOM PRODUCTIONS INC.

CREDITOR NAME	ADDRESS	CAD
Right Voice Communications	2420 34th Avenue NW, Calgary, AB, T2L 0V2, Canada	1,486.80
1536778 Alberta Ltd.	9259 74th Street, Edmonton, AB, T6B 2B5, Canada	1,216.67
Campbell Business Services Ltd	44 Lake Newell Green SE, Calgary, AB, T2J 3L8, Canada	5,313.00
ELIXR Simulations Association	252-10113 104 St NW, Edmonton, AB, T5J 1A1, Canada	2,625.00
MacKay CEO Forums	319-1641 Lonsdale Avenue, Vancouver, BC, V7M 2J5, Canada	3,955.00
ARC Resources Ltd.	1200-308 4th Avenue SW, Calgary, AB, T2P 0H7, Canada	116,133.72
AnswerNet - Telepartners Call Centre Inc.	5407 Eglinton Avenue West, Suite 103, Toronto, ON, M9C 5K6, Canada	23,652.39
MNP LLP	2000 - 330 5th Avenue SW, Calgary, AB, T2P 0L4, Canada	8,473.17
Everbrave Branding Group Ltd.	1630-150 9th Avenue SW, Calgary, AB, T2P 3H9, Canada	25,813.75
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	14,081.39
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	45,019.54
TOTAL		**$ 247,770.43**

SOCIAL5, LLC

CREDITOR NAME	ADDRESS	CAD
Bayside Closets	7901 4th St N, Suite 19787, St. Petersburg, FL, 33702, USA	1,352.59
Dad Crafted Decor LLC	3395 Hector Drive, West Valley City, UT, 84119, USA	1,283.57
Solana Recruitment Services	1566 S Wasatch Dr, Salt Lake City, UT, 84108, USA	6,372.61
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	36,699.71
TOTAL		**$ 45,708.48**

KNOWLEDGE STRATEGIES, INC.

CREDITOR NAME	ADDRESS	CAD
Automotive Oil Change Association	2443 Fair Oaks Blvd #1177, Sacramento, CA, 95825, USA	2,787.61
Complete Network Services LLC	14 Corporate Woods Blvd, Suite 217, Albany, NY, 12211, USA	2,474.00
Clean Slate Productions, LLC	116 White Branch Ct, Fort Mill, SC, 29715-9756, USA	12,031.48
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	4,306.13
TOTAL		**$ 21,599.22**

KESSEN GROUP SERVICES INC. (USA)

CREDITOR NAME	ADDRESS	CAD
Arizona School Personnel Administrators Association (ASPAA)	PO Box #8016, Glendale, AZ, 85312, USA	1,275.80
TWB Elite Consulting LLC	1651 East 70th Street #246, Shreveport, LA, 71105, USA	5,480.44
Effective Teacher Development	2380 N Riverside Dr, Florence, AZ, 85132, USA	3,320.13
TOTAL		**$ 10,076.37**

THE LEARNING NETWORK

CREDITOR NAME	ADDRESS	CAD
BARR Advisory, P.A.	5647 Suwanee Rd, Fairway, KS, 66205, USA	4,728.29
Simulation Canada	660 Eglinton Ave E, Toronto, ON, M4G 2K0, Canada	4,411.25
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	2,630.12
TOTAL		**$ 11,769.66**

KESSON GROUP INC.

CREDITOR NAME	ADDRESS	CAD
Litmos US, L.P.	2700 Camino Ramon, Suite 400, San Ramon, CA, 945835004, USA	6,768.67
Manhattan College	4513 Manhattan College Parkway, Bronx, NY, 10471, USA	3,261.51
McREL International	4601 DTC BLVD, Suite 500, Denver, CO, 80237, USA	17,834.40
Outreach Corporation	333 Elliott Ave W #500, Seattle, WA, 98119, USA	4,142.46

PowerSchool Canada ULC	4529 Melrose Street, Port Alberni, BC, V9Y 1K7, Canada	1,886.24
University of Toronto	215 Huron Street, 2nd Floor, Toronto, ON, M5S 1A2, Canada	140,520.54
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	4,328.62
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	28,164.37
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	25,270.20
TOTAL		**$ 232,177.01**

PATHWAYS TRAINING AND ELEARNING INC.

CREDITOR NAME	ADDRESS	CAD
Brodie Church Consulting Group	68 Bethune Street, Brockville, ON, K6V 2E2, Canada	1,130.00
Mindfield Consulting Corp.	4543 Frances Street, Burnaby, BC, V5C 2R6, Canada	23,870.12
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	1,834.24
TOTAL		**$ 26,834.36**

KESSON GROUP ALBANIA (IN LEK)

CREDITOR NAME	ADDRESS	CAD
Elite Law Office	Rr. Emin Duraku, Pasuria 1/96+1-64, Godina Ap. vjeter, Hyrja 10, Ap 64, Tirane, AL	2,875.12
Genc Boga Boga and Associates Attorneys at Law	40/3 Ibrahim Rugova Street, Tirana, 1019, AL	2,484.10
TOTAL		**$ 5,359.22**

LOGICBAY CORPORATION

CREDITOR NAME	ADDRESS	CAD
Meritor	2135 W Maple Road, Troy, MI, 48084, USA	1,614.21
Aetna	-	26,619.62
Humana Dental	PO Box 4600, Carol Stream, IL, 60197-4600, USA	1,217.36
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	41,244.43
QSG Technologies (P) Ltd	505 World Trade Center, Bangalore, 560055, IN	25,269.52
Rustici Software LLC	210 Gothic Court, Suite 100, Franklin, TN, 37067, USA	14,639.12
TOTAL		**$ 110,604.26**

KESSON GROUP UK LIMITED

CREDITOR NAME	ADDRESS	CAD
Menzies LLP	Centrum House, 36 Station Rd, Egham Surrey, TW20 9LF, GB	3,905.60
Piers Crossland	28 Hillcrest Rd, 7600, Cape Town, GB	5,519.58
TOTAL		**$ 9,425.18**

SKILSURE INC.

CREDITOR NAME	ADDRESS	CAD
Menzies LLP	Centrum House, 36 Station Rd, Egham Surrey, TW20 9LF, GB	4,190.45
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	11,808.50
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	12,598.66
TOTAL		**$ 28,597.61**

CONSOLIDATED TOTAL **$ 2,362,563.52**

Electronically issued / Délivré par voie électronique : 27-Dec-2024
Toronto Superior Court of Justice / Cour supérieure de justice

Court File No.: CV-24-00733415-00CL

ONTARIO
SUPERIOR COURT OF JUSTICE
COMMERCIAL LIST

THE HONOURABLE MISTER	)	TUESDAY, THE 17TH
	)	
JUSTICE CAVANAGH	)	DAY OF DECEMBER, 2024

IN THE MATTER OF THE *COMPANIES' CREDITORS ARRANGEMENT ACT*, R.S.C. 1985, c. C-36, AS AMENDED

AND IN THE MATTER OF A PLAN OF COMPROMISE OR ARRANGEMENT OF PLURIBUS TECHNOLOGIES CORP., PLURIBUS TECHNOLOGIES CANADA INC., CRESCERE FRAMEWORKS, LLC o/a THE LEARNING NETWORK, LOGICBAY CORPORATION, SKILSURE INC., SKILSURE SOFTWARE LIMITED, ICOM PRODUCTIONS INC., PATHWAYS TRAINING AND ELEARNING INC., KESSON GROUP INC., KESSON GROUP HOLDINGS LIMITED, KESSON GROUP UK LIMITED, KESSON GROUP ALBANIA SHPK., KESSON GROUP SERVICES, INC., PLURIBUS USA INC., SOCIAL5, LLC and KNOWLEDGE STRATEGIES, INC. o/a TORTAL TRAINING (collectively, the "**Applicants**")

AMENDED AND RESTATED INITIAL ORDER

THIS APPLICATION, made by the Applicants, pursuant to the *Companies' Creditors Arrangement Act*, R.S.C. 1985, c. C-36, as amended (the "**CCAA**") was heard this day by Zoom videoconference.

ON READING the affidavit of Diane Pedreira, sworn December 16, 2024 and the Exhibits thereto (the "**Pedreira Affidavit**"), the pre-filing report of B. Riley Farber Inc. ("**B. Riley**"), in its capacity as proposed monitor of the Applicants (the "**Monitor**"), dated December 16, 2024 (the "**Pre-Filing Report**"), and the first report of the Monitor dated December 19, 2024 (the "**First Report**"), and on being advised that the secured creditors who are likely to be affected by the charges created herein were given notice, and on hearing the submissions of counsel for the

Applicants, counsel for the Monitor, counsel for the directors of the Applicants (the "**Directors' Counsel**"), counsel for the DIP Lender (as defined below), and counsel for National Bank of Canada and National Bank of Canada, New York Branch (together, "**National Bank**"), and such other counsel as were present, no one appearing for any other party although duly served as appears from the affidavit of service of Kim Sellers, sworn December 16, 2024, filed, and on reading the consent of B. Riley to act as the Monitor,

SERVICE

1. **THIS COURT ORDERS** that the time for service of the Notice of Application and the Application Record is hereby abridged and validated so that this Application is properly returnable today and hereby dispenses with further service thereof.

APPLICATION

2. **THIS COURT ORDERS AND DECLARES** that the Applicants are companies to which the CCAA applies.

PLAN OF ARRANGEMENT

3. **THIS COURT ORDERS** that the Applicants shall have the authority to file and may, subject to further order of this Court, file with this Court a plan of compromise or arrangement (hereinafter referred to as the "**Plan**").

POSSESSION OF PROPERTY AND OPERATIONS

4. **THIS COURT ORDERS** that the Applicants shall remain in possession and control of their current and future assets, undertakings and properties of every nature and kind whatsoever, and wherever situate including all proceeds thereof (the "**Property**"). Subject to further Order of

this Court, the Applicants shall continue to carry on business in a manner consistent with the preservation of their businesses (the "**Business**") and Property. The Applicants are authorized and empowered to continue to retain and employ the employees, consultants, independent contractors, agents, experts, accountants, counsel and such other persons (collectively "**Assistants**") currently retained or employed by them, with liberty to retain such further Assistants as they deem reasonably necessary or desirable in the ordinary course of business or for the carrying out of the terms of this Order.

5. **THIS COURT ORDERS** that the Applicants shall be entitled to continue to utilize the banking and cash management system currently in place with National Bank (in such capacity, the "**Cash Management Provider**") as described in the Pedreira Affidavit or replace it with another substantially similar central cash management system (the "**Cash Management System**") and that any present or future bank providing the Cash Management System shall not be under any obligation whatsoever to inquire into the propriety, validity or legality of any transfer, payment, collection or other action taken under the Cash Management System, or as to the use or application by the Applicants of funds transferred, paid, collected or otherwise dealt with in the Cash Management System, shall be entitled to provide the Cash Management System without any liability in respect thereof to any Person (as hereinafter defined) other than the Applicants, pursuant to the terms of the documentation applicable to the Cash Management System, and shall be, in its capacity as provider of the Cash Management System, an unaffected creditor under a Plan with regard to any claims or expenses it may suffer or incur in connection with the provision of the Cash Management System.

6. **THIS COURT ORDERS** that the Applicants, subject to the terms of the Definitive Documents (as defined below) and the Cash Flow Projections (as defined in the DIP Term Sheet

(as defined below)) shall be entitled but not required to pay the following expenses whether incurred prior to or after the date of this Order:

(a) all outstanding and future wages, salaries, employee and pension benefits, vacation pay, expenses, and fees to independent contractors and consultants payable on or after the date of this Order, in each case incurred in the ordinary course of business and consistent with existing compensation policies and arrangements;

(b) the fees and disbursements of any Assistants retained or employed by the Applicants in respect of these proceedings, at their standard rates and charges;

(c) all outstanding credit card liabilities owing by any of the Applicants in respect of any credit card issued by National Bank; and

(d) payment for goods or services actually supplied to the Applicants by third party suppliers prior to the date of this Order if it is determined by the Applicants, with the consent of the Monitor, that the supplier is critical to the Business, ongoing operations of the Applicants, or preservation of the Property, the payment required to ensure ongoing supply and/or services, and such payments are approved in advance by the Monitor or by further Order of the Court.

7. **THIS COURT ORDERS** that, except as otherwise provided to the contrary herein, and subject to the terms of the Definitive Documents, the Applicants shall be entitled but not required to pay all reasonable expenses incurred by the Applicants in carrying on the Business in the ordinary course after this Order, and in carrying out the provisions of this Order, which expenses shall include, without limitation:

(a) all expenses and capital expenditures reasonably necessary for the preservation of the Property or the Business including, without limitation, payments on account of insurance (including directors' and officers' insurance), maintenance and security services; and

(b) payment for goods or services actually supplied to the Applicants following the date of this Order.

8. **THIS COURT ORDERS** that the Applicants shall remit, in accordance with legal requirements, or pay:

(a) any statutory deemed trust amounts in favour of the Crown in right of Canada or of any Province thereof or any other taxation authority which are required to be deducted from employees' wages, including, without limitation, amounts in respect of (i) employment insurance, (ii) Canada Pension Plan, (iii) income taxes; and (iv) all other amounts related to such deductions or employee wages payable pursuant to the *Income Tax Act*, *Canada Pension Plan*, *Employment Insurance Act*, and similar provincial statutes;

(b) all goods and services or other applicable sales taxes (collectively, "**Sales Taxes**") required to be remitted by the Applicants in connection with the sale of goods and services by the Applicants, but only where such Sales Taxes are accrued or collected after the date of this Order, or where such Sales Taxes were accrued or collected prior to the date of this Order but not required to be remitted until on or after the date of this Order, and

(c) any amount payable to the Crown in right of Canada or of any Province thereof or any political subdivision thereof or any other taxation authority in respect of municipal realty, municipal business or other taxes, assessments or levies of any nature or kind which are entitled at law to be paid in priority to claims of secured creditors and which are attributable to or in respect of the carrying on of the Business by the Applicants.

9. **THIS COURT ORDERS** that until a real property lease is disclaimed in accordance with the CCAA, the Applicants shall pay all amounts constituting rent or payable as rent under real property leases (including, for greater certainty, common area maintenance charges, utilities and realty taxes and any other amounts payable to the landlord under the lease) or as otherwise may be negotiated between the Applicants and the landlord from time to time ("**Rent**"), for the period commencing from and including the date of this Order, twice-monthly in equal payments on the first and fifteenth day of each month, in advance (but not in arrears) in the amounts set out in the applicable lease or, with the consent of the Monitor and the DIP Lender, at such other time intervals and dates as may be agreed to between the applicable Applicant(s) and landlord. On the date of the first of such payments, any Rent relating to the period commencing from and including the date of this Order shall also be paid.

10. **THIS COURT ORDERS** that, except as specifically permitted herein or required pursuant to the terms of the Definitive Documents, the Applicants are hereby directed, until further Order of this Court: (a) to make no payments of principal, interest thereon or otherwise on account of amounts owing by the Applicants to any of its creditors as of this date; (b) to grant no security interests, trust, liens, charges or encumbrances upon or in respect of any of its Property; and (c) to not grant credit or incur liabilities except in the ordinary course of the Business. Notwithstanding

the foregoing, the Applicants shall be entitled to continue to operate the Cash Management System.

RESTRUCTURING

11. **THIS COURT ORDERS** that the Applicants shall, subject to such requirements as are imposed by the CCAA and such covenants as may be contained in the Definitive Documents, have the right to:

(a) permanently or temporarily cease, downsize or shut down any of its business or operations outside of the ordinary course of business, and to dispose of redundant or non-material assets not exceeding $375,000 in any one transaction or $1,000,000 in the aggregate;

(b) terminate the employment of such of its employees or temporarily lay off such of their employees as it deems appropriate; and

(c) pursue all avenues of refinancing of their Business or Property, in whole or part, subject to prior approval of this Court being obtained before any material refinancing,

all of the foregoing to permit the Applicants to proceed with an orderly restructuring of the Business.

12. **THIS COURT ORDERS** that the Applicants shall provide each of the relevant landlords with notice of the Applicants' intention to remove any fixtures from any leased premises at least seven (7) days prior to the date of the intended removal. The relevant landlord shall be entitled to have a representative present in the leased premises to observe such removal and, if the landlord

disputes the Applicants' entitlement to remove any such fixture under the provisions of the lease, such fixture shall remain on the premises and shall be dealt with as agreed between any applicable secured creditors, such landlord and the Applicants, or by further Order of this Court upon application by the Applicants on at least two (2) days notice to such landlord and any such secured creditors. If the Applicants disclaim the lease governing such leased premises in accordance with Section 32 of the CCAA, it shall not be required to pay Rent under such lease pending resolution of any such dispute (other than Rent payable for the notice period provided for in Section 32(5) of the CCAA), and the disclaimer of the lease shall be without prejudice to the Applicants' claim to the fixtures in dispute.

13. **THIS COURT ORDERS** that if a notice of disclaimer is delivered pursuant to Section 32 of the CCAA, then (a) during the notice period prior to the effective time of the disclaimer, the landlord may show the affected leased premises to prospective tenants during normal business hours, on giving the Applicants and the Monitor 24 hours' prior written notice, and (b) at the effective time of the disclaimer, the relevant landlord shall be entitled to take possession of any such leased premises without waiver of or prejudice to any claims or rights such landlord may have against the Applicants in respect of such lease or leased premises, provided that nothing herein shall relieve such landlord of its obligation to mitigate any damages claimed in connection therewith.

NO PROCEEDINGS AGAINST THE APPLICANTS OR THE PROPERTY

14. **THIS COURT ORDERS** that until and including March 15, 2025, or such later date as this Court may order (the "**Stay Period**"), no proceeding or enforcement process in any court or tribunal (each, a "**Proceeding**") shall be commenced or continued against or in respect of the

Applicants or the Monitor, or affecting the Business or the Property, except with the written consent of the Applicants and the Monitor, or with leave of this Court, and any and all Proceedings currently under way against or in respect of the Applicants or affecting the Business or the Property are hereby stayed and suspended pending further Order of this Court.

NO EXERCISE OF RIGHTS OR REMEDIES

15. **THIS COURT ORDERS** that during the Stay Period, all rights and remedies of any individual, firm, corporation, governmental body or agency, or any other entities (all of the foregoing, collectively being "**Persons**" and each being a "**Person**") against or in respect of the Applicants or the Monitor, or affecting the Business or the Property, are hereby stayed and suspended except with the written consent of the Applicants and the Monitor, or leave of this Court, provided that nothing in this Order shall (i) empower the Applicants to carry on any business which the Applicants are not lawfully entitled to carry on, (ii) affect such investigations, actions, suits or proceedings by a regulatory body as are permitted by Section 11.1 of the CCAA, (iii) prevent the filing of any registration to preserve or perfect a security interest, or (iv) prevent the registration of a claim for lien.

NO INTERFERENCE WITH RIGHTS

16. **THIS COURT ORDERS** that during the Stay Period, no Person shall discontinue, fail to honour, alter, interfere with, repudiate, terminate or cease to perform any right, renewal right, contract, agreement, licence or permit in favour of or held by the Applicants, except with the written consent of the Applicants and the Monitor, or leave of this Court.

NO PRE-FILING VS POST-FILING SET OFF

17. **THIS COURT ORDERS** that, other than the Cash Management Provider, no Person shall be entitled to set off any amounts that (a) are or may become due to the Applicants in respect of obligations arising prior to the date hereof with any amounts that are or may become due from the Applicants in respect of obligations arising on or after the date of this Order; or (b) are or may become due from the Applicants in respect of obligations arising prior to the date hereof with any amounts that are or may become due to the Applicants in respect of obligations arising on or after the date of this Order, in each case without the consent of the Applicants and the Monitor, or leave of this Court.

CONTINUATION OF SERVICES

18. **THIS COURT ORDERS** that during the Stay Period, all Persons having oral or written agreements with the Applicants or statutory or regulatory mandates for the supply of goods and/or services, including without limitation all computer software, communication and other data services, centralized banking services, payroll services, insurance, transportation services, utility or other services to the Business or the Applicants, are hereby restrained until further Order of this Court from discontinuing, altering, interfering with or terminating the supply of such goods or services as may be required by the Applicants, and that the Applicants shall be entitled to the continued use of their current premises, telephone numbers, facsimile numbers, internet addresses and domain names, provided in each case that the normal prices or charges for all such goods or services received after the date of this Order are paid by the Applicants in accordance with normal payment practices of the Applicants or such other practices as may be agreed upon by the supplier or service provider and each of the Applicants and the Monitor, or as may be ordered by this Court.

NON-DEROGATION OF RIGHTS

19. **THIS COURT ORDERS** that, notwithstanding anything else in this Order, no Person shall be prohibited from requiring immediate payment for goods, services, use of lease or licensed property or other valuable consideration provided on or after the date of this Order, nor shall any Person be under any obligation on or after the date of this Order to advance or re-advance any monies or otherwise extend any credit to the Applicants. Nothing in this Order shall derogate from the rights conferred and obligations imposed by the CCAA.

PROCEEDINGS AGAINST DIRECTORS AND OFFICERS

20. **THIS COURT ORDERS** that during the Stay Period, and except as permitted by subsection 11.03(2) of the CCAA, no Proceeding may be commenced or continued against any of the former, current or future directors or officers of the Applicants with respect to any claim against the directors or officers that arose before the date hereof and that relates to any obligations of the Applicants whereby the directors or officers are alleged under any law to be liable in their capacity as directors or officers for the payment or performance of such obligations, until a compromise or arrangement in respect of the Applicants, if one is filed, is sanctioned by this Court or upon further Order of this Court.

DIRECTORS' AND OFFICERS' INDEMNIFICATION AND CHARGE

21. **THIS COURT ORDERS** that the Applicants shall indemnify its directors and officers against obligations and liabilities that they may incur as directors or officers of the Applicants after the commencement of the within proceedings, except to the extent that, with respect to any officer or director, the obligation or liability was incurred as a result of the director's or officer's gross negligence or wilful misconduct.

22. **THIS COURT ORDERS** that the directors and officers of the Applicants shall be entitled to the benefit of and are hereby granted a charge (the "**Directors' Charge**") on the Property, which charge shall not exceed an aggregate amount of $375,000, as security for the indemnity provided in paragraph 21 of this Order. The Directors' Charge shall have the priority set out in paragraphs 39 and 41 herein.

23. **THIS COURT ORDERS** that, notwithstanding any language in any applicable insurance policy to the contrary, (a) no insurer shall be entitled to be subrogated to or claim the benefit of the Directors' Charge, and (b) the Applicants' directors and officers shall only be entitled to the benefit of the Directors' Charge to the extent that they do not have coverage under any directors' and officers' insurance policy, or to the extent that such coverage is insufficient to pay amounts indemnified in accordance with paragraph 21 of this Order.

APPOINTMENT OF MONITOR

24. **THIS COURT ORDERS** that B. Riley is hereby appointed pursuant to the CCAA as the Monitor, an officer of this Court, to monitor the business and financial affairs of the Applicants with the powers and obligations set out in the CCAA or set forth herein and that the Applicants and their respective shareholders, officers, directors, and Assistants shall advise the Monitor of all material steps taken by the Applicants pursuant to this Order, and shall co-operate fully with the Monitor in the exercise of its powers and discharge of its obligations and provide the Monitor with the assistance that is necessary to enable the Monitor to adequately carry out the Monitor's functions.

25. **THIS COURT ORDERS** that the Monitor, in addition to its prescribed rights and obligations under the CCAA, is hereby directed and empowered to:

(a) monitor the Applicants' receipts and disbursements including the management and use of any funds advanced by the DIP Lender to the Applicants under the DIP Term Sheet and the Applicants' compliance with the Cash Flow Projections;

(b) report to this Court at such times and intervals as the Monitor may deem appropriate with respect to matters relating to the Property, the Business, and such other matters as may be relevant to the proceedings herein;

(c) assist the Applicants, to the extent required by the Applicants, in their dissemination, to the DIP Lender and its counsel, on a weekly basis, or as otherwise agreed to by the DIP Lender, of financial and other information as agreed to between the Applicants and the DIP Lender, which may be used in these proceedings including reporting on a basis to be agreed with the DIP Lender or as required pursuant to the Definitive Documents;

(d) advise the Applicants in their preparation of the Applicants' cash flow statements and reporting required by the DIP Lender, which information shall be reviewed with the Monitor and delivered to the DIP Lender and its counsel on a periodic basis, but not less than weekly, or as otherwise agreed to by the DIP Lender or as required pursuant to the Definitive Documents;

(e) assist the Applicants, to the extent required by the Applicants, in their dissemination, to National Bank and the DIP Lender and its counsel of financial and other information as agreed to between the Applicants and National Bank, which may be used in these proceedings including reporting on a basis to be agreed with National Bank;

(f) monitor all payments, obligations and transfers as between the Applicants;

(g) advise the Applicant in its development of the Plan and any amendments to the Plan;

(h) assist the Applicant, to the extent required by the Applicant, with the holding and administering of creditors' or shareholders' meetings for voting on the Plan;

(i) have full and complete access to the Property, including the premises, books, records, data, including data in electronic form, and other financial documents of the Applicants, to the extent that is necessary to adequately assess the Applicants' business and financial affairs or to perform its duties arising under this Order;

(j) be at liberty to engage independent legal counsel or such other persons as the Monitor deems necessary or advisable respecting the exercise of its powers and performance of its obligations under this Order; and

(k) perform such other duties as are required by this Order or by this Court from time to time.

26. **THIS COURT ORDERS** that the Monitor shall not take possession of the Property and shall take no part whatsoever in the management or supervision of the management of the Business and shall not, by fulfilling its obligations hereunder, be deemed to have taken or maintained possession or control of the Business or Property, or any part thereof.

27. **THIS COURT ORDERS** that the Monitor shall not occupy, take control, care, charge, possession or management (separately and/or collectively, "**Possession**") of (or be deemed to take

Possession of) any of the Property that might be environmentally contaminated, might be a pollutant or a contaminant, or might cause or contribute to a spill, discharge, release or deposit of a substance contrary to any federal, provincial or other law respecting the protection, conservation, enhancement, remediation or rehabilitation of the environment or relating to the disposal of waste or other contamination including, without limitation, the *Canadian Environmental Protection Act*, the Ontario *Environmental Protection Act*, the *Ontario Water Resources Act*, or the Ontario *Occupational Health and Safety Act* and regulations thereunder (the "**Environmental Legislation**"), provided however that nothing herein shall exempt the Monitor from any duty to report or make disclosure imposed by applicable Environmental Legislation. The Monitor shall not, as a result of this Order or anything done in pursuance of the Monitor's duties and powers under this Order, be deemed to be in Possession of any of the Property within the meaning of any Environmental Legislation, unless it is actually in possession.

28. **THIS COURT ORDERS** that the Monitor shall provide any creditor of the Applicants, and the DIP Lender with information provided by the Applicants in response to reasonable requests for information made in writing by such creditor addressed to the Monitor. The Monitor shall not have any responsibility or liability with respect to the information disseminated by it pursuant to this paragraph. In the case of information that the Monitor has been advised by the Applicants is confidential, the Monitor shall not provide such information to creditors unless otherwise directed by this Court or on such terms as the Monitor and the Applicants may agree.

29. **THIS COURT ORDERS** that, in addition to the rights and protections afforded the Monitor under the CCAA or as an officer of this Court, the Monitor shall incur no liability or obligation as a result of its appointment or the carrying out of the provisions of this Order, save and

except for any gross negligence or wilful misconduct on its part. Nothing in this Order shall derogate from the protections afforded the Monitor by the CCAA or any applicable legislation.

30. **THIS COURT ORDERS** that the Monitor, counsel to the Monitor, counsel to the Applicants and Directors' Counsel shall be paid their reasonable fees and disbursements, in each case at their standard rates and charges, whether incurred prior to, on or subsequent to, the date of this Order by the Applicants as part of the costs of these proceedings. The Applicants are hereby authorized and directed to pay the accounts of the Monitor, counsel for the Monitor, counsel for the Applicants and Directors' Counsel on a weekly basis and, in addition, the Applicants are hereby authorized to pay to the Monitor, counsel to the Monitor, and counsel to the Applicants, retainers in the amounts of $50,000, $30,000, and $50,000, respectively, to be held by them as security for payment of their respective fees and disbursements outstanding from time to time.

31. **THIS COURT ORDERS** that the Monitor and its legal counsel shall pass their accounts from time to time, and for this purpose the accounts of the Monitor and its legal counsel are hereby referred to a judge of the Commercial List of the Ontario Superior Court of Justice.

32. **THIS COURT ORDERS** that the Monitor, counsel to the Monitor, the Applicants' counsel and Directors' Counsel to the shall be entitled to the benefit of and are hereby granted a charge (the "**Administration Charge**") on the Property, which charge shall not exceed an aggregate amount of $750,000, as security for their professional fees and disbursements incurred at the standard rates and charges of the Monitor and such counsel, both before and after the making of this Order in respect of these proceedings. The Administration Charge shall have the priority set out in paragraphs 39 and 41 hereof.

DIP FINANCING

33. **THIS COURT ORDERS** that the Applicants are hereby authorized and empowered to obtain and borrow under a credit facility, on a joint and several basis, under the DIP Term Sheet dated as of December 11, 2024 (the "**DIP Term Sheet**"), between the Applicants, as borrowers and Evergreen Gap Debt Inc., as Agent for itself and on behalf of Evergreen Gap Debt LP (the "**DIP Lender**"), and attached to the Pedreira Affidavit, in order to finance the Applicants' working capital requirements, other general corporate purposes, and capital expenditures, accrued interest and expenses, all in accordance with the Definitive Documents and Cash Flow Projections, provided that borrowings under the DIP Term Sheet shall not exceed the principal amount of $2,500,000 plus interest, fees, and expenses, unless permitted by further Order of this Court.

34. **THIS COURT ORDERS** that the DIP Facility shall be on the terms and subject to the conditions set forth in the Definitive Documents.

35. **THIS COURT ORDERS** that the Applicants are hereby authorized and empowered to execute and deliver such credit agreements, mortgages, charges, hypothecs and security documents, guarantees and other definitive documents (collectively, and including the DIP Term Sheet, the "**Definitive Documents**"), as are contemplated by the DIP Term Sheet or as may be reasonably required by the DIP Lender pursuant to the terms thereof, and the Applicants are hereby authorized and directed to pay and perform all of their indebtedness, interest, fees, liabilities and obligations to the DIP Lender under and pursuant to the DIP Term Sheet and Definitive Documents (collectively, the "**DIP Obligations**") as and when the same become due and are to be performed, notwithstanding any other provision of this Order.

36. **THIS COURT ORDERS** that the DIP Lender shall be entitled to the benefit of and is hereby granted a charge (the "**DIP Lender's Charge**") on the Property, as security for any and all DIP Obligations. The DIP Lender's Charge shall not secure an obligation that exists before this Order is made. The DIP Lender's Charge shall have the priority set out in paragraphs 39 and 41 hereof.

37. **THIS COURT ORDERS** that, notwithstanding any other provision of this Order:

(a) the DIP Lender may take such steps from time to time as it may deem necessary or appropriate to file, register, record or perfect the DIP Lender's Charge or any of the Definitive Documents;

(b) upon the occurrence of an event of default under the Definitive Documents or the DIP Lender's Charge, the DIP Lender, upon five (5) days notice to the Applicants, may exercise any and all of its rights and remedies against the Applicants or the Property under or pursuant to the Definitive Documents and the DIP Lender's Charge, including without limitation, to cease making advances to the Applicants and set off and/or consolidate any amounts owing by the DIP Lender to the Applicants against the obligations of the Applicants to the DIP Lender under the Definitive Documents or the DIP Lender's Charge, to make demand, accelerate payment and give other notices, or to apply to this Court for the appointment of a receiver, receiver and manager or interim receiver, or for a bankruptcy order against the Applicants and for the appointment of a trustee in bankruptcy of the Applicants; and

(c) the foregoing rights and remedies of the DIP Lender shall be enforceable against any trustee in bankruptcy, interim receiver, receiver or receiver and manager of the Applicants or the Property.

38. **THIS COURT ORDERS AND DECLARES** that the DIP Lender shall be treated as unaffected in any Plan filed by the Applicants under the CCAA, or any proposal filed by the Applicants under the *Bankruptcy and Insolvency Act* of Canada (the "**BIA**"), with respect to any advances made under the Definitive Documents.

VALIDITY AND PRIORITY OF CHARGES CREATED BY THIS ORDER

39. **THIS COURT ORDERS** that the priorities of the Directors' Charge, the Administration Charge and the DIP Lender's Charge, (collectively, the "**Charges**") as among them, shall be as follows:

First - Administration Charge (to the maximum amount of $750,000);

Second - DIP Lender's Charge; and

Third - Directors' Charge (to the maximum amount of $375,000).

40. **THIS COURT ORDERS** that the filing, registration or perfection of any of the Charges shall not be required, and that the Charges shall be valid and enforceable for all purposes, including as against any right, title or interest filed, registered, recorded or perfected subsequent to the Charges coming into existence, notwithstanding any such failure to file, register, record or perfect.

41. **THIS COURT ORDERS** that each of the Charges shall constitute a charge on the Property and such Charges shall rank in priority to all other security interests, trusts, liens, charges and encumbrances, claims of secured creditors, statutory or otherwise (collectively, "**Encumbrances**") in favour of any Person.

42. **THIS COURT ORDERS** that except as otherwise expressly provided for herein, or as may be approved by this Court, the Applicants shall not grant any Encumbrances over any Property that rank in priority to, or *pari passu* with, any of the Charges, unless the Applicants also obtain the prior written consent of the Monitor, the DIP Lender and the beneficiaries of the Charges, or further Order of this Court.

43. **THIS COURT ORDERS** that the Charges and the Definitive Documents shall not be rendered invalid or unenforceable and the rights and remedies of the chargees entitled to the benefit of the Charges (collectively, the "**Chargees**") and/or the DIP Lender thereunder shall not otherwise be limited or impaired in any way by (a) the pendency of these proceedings and the declarations of insolvency made herein; (b) any application(s) for bankruptcy order(s) issued pursuant to BIA, or any bankruptcy order made pursuant to such applications; (c) the filing of any assignments for the general benefit of creditors made pursuant to the BIA; (d) the provisions of any federal or provincial statutes; or (e) any negative covenants, prohibitions or other similar provisions with respect to borrowings, incurring debt or the creation of Encumbrances, contained in any existing loan documents, lease, sublease, offer to lease or other agreement (collectively, an "**Agreement**") which binds the Applicants, and notwithstanding any provision to the contrary in any Agreement:

(a) neither the creation of the Charges nor the execution, delivery, perfection, registration or performance of the DIP Term Sheer or the Definitive Documents shall create or be deemed to constitute a breach by any of the Applicants of any Agreement to which it is a party;

(b) none of the Chargees shall have any liability to any Person whatsoever as a result of any breach of any Agreement caused by or resulting from the Applicants entering into the DIP Term Sheet, the creation of the Charges, or the execution, delivery or performance of the Definitive Documents; and

(c) the payments made by the Applicants pursuant to this Order, or the Definitive Documents, and the granting of the Charges, do not and will not constitute preferences, fraudulent conveyances, transfers at undervalue, oppressive conduct, or other challengeable or voidable transactions under any applicable law.

44. **THIS COURT ORDERS** that any Charge created by this Order over leases of real property in Canada shall only be a Charge in the Applicants' interest in such real property leases.

CORPORATE MATTERS

45. **THIS COURT ORDERS** that Pluribus Technologies Inc. ("**Pluribus**") be and is hereby relieved of any obligation to call and hold an annual meeting of its shareholders until further Order of the Court.

RELIEF FROM REPORTING OBLIGATIONS

46. **THIS COURT ORDERS** that the decision by Pluribus to incur no further expenses in relation to any filings, disclosures, core or non-core documents, restatements, amendments to

existing filings, press releases or any other actions (collectively, the "**Securities Filings**") that may be required by any federal, provincial or other law respecting securities or capital markets in Canada, or by the rules and regulations of a stock exchange, including, without limitation, the *Securities Act (Ontario)*, RSO 1990, c S.5 and comparable statutes enacted by other provinces of Canada, the TSX Company Manual and other rules, regulations and policies of the TSX Venture Exchange (collectively, the "**Securities Provisions**"), is hereby authorized, provided that nothing in this paragraph shall prohibit any securities regulator or stock exchange from taking any action or exercising any discretion that it may have of a nature described in section 11.1(2) of the CCAA as a consequence of the Applicants failing to make any Securities Filings required by the Securities Provisions.

47. **THIS COURT ORDERS** that none of the directors, officers, employees, and other representatives of the Applicants nor the Monitor shall have any personal liability for any failure by the Applicants to make any Securities Filings required by the Securities Provisions.

SERVICE AND NOTICE

48. **THIS COURT ORDERS** that the Monitor shall (i) without delay, publish in Globe & Mail a notice containing the information prescribed under the CCAA, (ii) within five business days after the date of this Order, (A) make this Order publicly available in the manner prescribed under the CCAA, (B) send, in the prescribed manner, a notice to every known creditor other than employees and independent contractors who has a claim against any of the Applicants of more than $1000, and (C) prepare a list showing the names and addresses of those creditors and the estimated amounts of those claims, and make it publicly available in the prescribed manner, all in accordance with Section 23(1)(a) of the CCAA and the regulations made thereunder; provided that

the Monitor shall not be required to make the claims, names and addresses of individual creditors publicly available unless otherwise ordered by this Court.

49. **THIS COURT ORDERS** that the E-Service Guide of the Commercial List (the "**Guide**") is approved and adopted by reference herein and, in this proceeding, the service of documents made in accordance with the Guide (which can be found on the Commercial List website at: https://www.ontariocourts.ca/scj/practice/regional-practice-directions/eservice-commercial/) shall be valid and effective service. Subject to Rule 17.05 this Order shall constitute an order for substituted service pursuant to Rule 16.04 of the *Rules of Civil Procedure*. Subject to Rule 3.01(d) of the *Rules of Civil Procedure* and paragraph 13 of the Guide, service of documents in accordance with the Guide will be effective on transmission. This Court further orders that a Case Website shall be established in accordance with the Guide with the following URL https://brileyfarber.com/engagements/pluribus-technologies-corp/ (the "**Monitor's Website**").

50. **THIS COURT ORDERS** that the Monitor shall create, maintain and update as necessary a list of all Persons appearing in person or by counsel in this proceeding (the "**Service List**"). The Monitor shall post the Service List, as may be updated from time to time, on the Monitor's Website, provided that the Monitor shall have no liability in respect of the accuracy or the timeliness of making any changes to the Service List.

51. **THIS COURT ORDERS** that if the service or distribution of documents in accordance with the Guide is not practicable, the Applicants and the Monitor are at liberty to serve or distribute this Order, any other materials and orders in these proceedings, any notices or other correspondence, by forwarding true copies thereof by prepaid ordinary mail, courier, personal delivery or facsimile transmission to the Applicants' creditors or other interested parties at their

respective addresses as last shown on the records of the Applicants and that any such service or distribution by courier, personal delivery or facsimile transmission shall be deemed to be received on the next business day following the date of forwarding thereof, or if sent by ordinary mail, on the third business day after mailing.

52. **THIS COURT ORDERS** that the Applicants, the Monitor and their respective counsel are at liberty to serve or distribute this Order, any other materials and Orders as may be reasonably required in these proceedings, including any notices, or other correspondence, by forwarding true copies thereof by electronic message to the Applicants' creditors or other interested parties and their advisors. Any such distribution or service shall be deemed to be in satisfaction of a legal or juridical obligation, and notice requirements within the meaning of clause 3(c) of the *Electronic Commerce Protection Regulations*, Reg. 81000-2-175 (SOR/DORS).

COMEBACK MOTION

53. **THIS COURT ORDERS** that the comeback motion shall be heard by a judge of the Ontario Superior Court of Justice (Commercial List) on December 23, 2024 at 9:30 a.m. Comeback Date and any such interested party shall give not less than two (2) business days' notice to the Service List and any other party or parties likely to be affected by the Order sought in advance of the Comeback Date; provided, however, that the Chargees shall be entitled to rely on this Order as granted and on the Charges and priorities set forth in paragraphs 39 and 41 hereof with respect to any fees, expenses and disbursements incurred, as applicable, until the date this Order may be amended, varied or stayed

FOREIGN PROCEEDINGS AND FOREIGN REPRESENTATIVE

54. **THIS COURT ORDERS** that Pluribus and the Monitor be and are each hereby authorized and empowered to act as a foreign representative (the "**Foreign Representative**") in respect of these proceedings for the purpose of having these proceedings recognized and approved in a jurisdiction outside of Canada.

55. **THIS COURT ORDERS** that the Foreign Representative be and is hereby authorized to apply for foreign recognition of these proceedings, as necessary or advisable, in any jurisdiction outside of Canada, including in the United States pursuant to chapter 15 of title 11 of the United States Code, 11 U.S.C. §§ 101-1532, or otherwise.

GENERAL

56. **THIS COURT ORDERS** that the Applicants or the Monitor may from time to time apply to this Court for advice and directions in the discharge of its powers and duties hereunder.

57. **THIS COURT ORDERS** that nothing in this Order shall prevent the Monitor from acting as an interim receiver, a receiver, a receiver and manager, or a trustee in bankruptcy of the Applicants, the Business or the Property.

58. **THIS COURT HEREBY REQUESTS** the aid and recognition of any court, tribunal, regulatory or administrative body having jurisdiction in Canada or in the United States, to give effect to this Order and to assist the Applicants, the Monitor and their respective agents in carrying out the terms of this Order. All courts, tribunals, regulatory and administrative bodies are hereby respectfully requested to make such orders and to provide such assistance to the Applicants and to the Monitor, as an officer of this Court, as may be necessary or desirable to give effect to this

Order, to grant representative status to the Monitor in any foreign proceeding, or to assist the Applicants and the Monitor and their respective agents in carrying out the terms of this Order.

59. **THIS COURT ORDERS** that Pluribus and the Monitor be and are each hereby authorized and at liberty and are each hereby authorized and empowered to apply to any court, tribunal, regulatory or administrative body, wherever located, for the recognition of this Order and for assistance in carrying out the terms of this Order, and that the Monitor and Pluribus is authorized and empowered to act as a representative in respect of the within proceedings for the purpose of having these proceedings recognized in a jurisdiction outside Canada.

60. **THIS COURT ORDERS** that any interested party (including the Applicants and the Monitor) may apply to this Court to vary or amend this Order on not less than seven (7) days' notice to any other party or parties likely to be affected by the order sought or upon such other notice, if any, as this Court may order.

61. **THIS COURT ORDERS** that this Order and all of its provisions are effective *nunc pro tunc* as of 12:01 a.m. Eastern Standard/Daylight Time on the date of this Order, and is enforceable without any need for entry and filing.



IN THE MATTER OF THE *COMPANIES' CREDITORS ARRANGEMENT ACT*, R.S.C. 1985, c.C-36 AS AMENDED

IN THE MATTER OF A PLAN OF COMPROMISE OR ARRANGEMENT OF PLURIBUS TECHNOLOGIES CORP. et al.
Applicants

Court File No.: CV-24-00733415-00CL

ONTARIO
SUPERIOR COURT OF JUSTICE
COMMERCIAL LIST

Proceeding Commenced at
Toronto

AMENDED AND RESTATED INITIAL ORDER
(Dated December 17, 2024)

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 5800
P.O. Box 1011
Toronto ON M5H 3S1

Kyla Mahar (LSO#: 44182G)
kmahar@millerthomson.com
Tel: 416-595-2969

Gina Rhodes (LSO#: 78849U)
grhodes@millerthomson.com
Tel: 416-597-4321

Lawyers for the Applicants

From: Maggie Xu <m.xu@utoronto.ca>
Subject: Re: TeachAway - Update & Next Steps
To: "Hanadi Abdullah" <hanadi.abdullah@utoronto.ca> "Elisabeth Rees-Johnstone" <e.rees.johnstone@utoronto.ca> "Michael Cassidy" <michael.cassidy@utoronto.ca>
Sent: Thu, 06 Mar 2025 11:07:43 -0500 (Thu, 06 Mar 2025 16:07:43 GMT)

Invoice #	*Date*	*Project*	*Amount*	*Paid Date*
K17-11-461	18-Apr-23	TEFL Postage Recovery Sep 2022 - Feb 2023 CAD	$ 2,475.84	overdue 181 days
K17-490	1-Jun-24	TEFL Online royalties March-May 2024 CAD Q4	$ 75,255.92	overdue 91 days
K17-494	31-Aug-24	TEFL Online royalties June - August 2024 CAD Q1	$ 65,203.71	overdue 91 days
		Total Outstanding Amount:	$ 142,935.47	
	due December	TEFL Online royalties September 2024 - November 2024 CAD	report unsubmitted	unpaid
K17-501	4/12/2024	TEFL Online royalties Sep - Nov 2024 CAD Q2	$ 65,449.74	overdue 91 days
TBD	March	TEFL Online royalties Dec-Feb 2025 CAD Q3	TBD	

Thank you!

Maggie

MAGGIE XU M.Eng, CPA, CMA
Senior Financial Analyst
Continuing & Professional Learning
Office: 416-978-2154
m.xu@utoronto.ca

From: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Sent: Thursday, March 6, 2025 10:31 AM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>; Michael Cassidy <michael.cassidy@utoronto.ca>
Subject: Re: TeachAway - Update & Next Steps

Hi all,

Sending a summary of TeachAway's pending payments (as provided by Maggie):

k1711461	1800369672	2023-04-21	2,475.84	CAD	k1711461 teach away inc
k17490	1800384740	2024-08-27	75,255.92	CAD	k17490 teach away inc
k17494	1800386330	2024-10-25	65,203.71	CAD	k17494 teach away inc

- COMPANY IS IN BANKRUPCY COURT PROTECTION. WE ARE WAITING TO HEAR FROM THE COURT MONITOR BY 15 MARCH 2025

Talk soon,
Hanadi

—

HANADI ABDULLAH

Senior Program Manager

OISE Continuing & Professional Learning

University of Toronto

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

From: Elisabeth Rees-Johnstone
Sent: Wednesday, March 5, 2025 9:30 AM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>; Michael Cassidy <michael.cassidy@utoronto.ca>; Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: TeachAway - Update & Next Steps
When: Thursday, March 6, 2025 10:30 AM-11:25 AM.
Where: Microsoft Teams Meeting

Microsoft Teams Need help?

Join the meeting now

Meeting ID: 220 261 863 366

Passcode: nN643nC2

Dial in by phone

+1 647-794-1609,,215351737# Canada, Toronto

Find a local number

Phone conference ID: 215 351 737#

For organizers: Meeting options | Reset dial-in PIN

FIPPA s. 19

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UNIVERSITY OF TORONTO
OISE | ONTARIO INSTITUTE
FOR STUDIES IN EDUCATION

teachaway

OISE TEFL
Quarterly Report

Dec 1, 2024 - Feb 28, 2025

March 3, 2024
Teach Away

UNIVERSITY OF TORONTO
OISE | ONTARIO INSTITUTE FOR STUDIES IN EDUCATION

teachaway

SALES UPDATE

From Dec 1, 2024, to Feb 28, 2025, 155 students enrolled in OISE TEFL. See the charts below for detailed information on enrollment numbers. For detailed information on students and enrollment, please see Appendix A.

The following amounts are broken down by Canadian and non-Canadian sales. Please note that the default currency in Shopify is CAD, therefore all student payments are sent to our accounts in CAD.

Total royalties owed to the University of Toronto	
Total Revenue (CAD)	**$199,551.42**
Total Royalties Due (CAD)	**$60,580.09**

Total number of students enrolled by month					
Month		**Dec**	**Jan**	**Feb**	**Total for Quarter**
No. of Students		30	53	51	134

SALES - CANADA

Student enrollment by month (Canada)					
Month	**Nov**	**Dec**	**Jan**	**Feb**	**Total Enrollment**
100-Hour		0	0	0	0
120-Hour	1	18	19	13	51
150-Hour		12	22	16	50
Total	**1**	**30**	**41**	**29**	**101**
Revenue (CAD)	**$971.25**	**$33,627.50**	**$47,112.00**	**$32,604.00**	**$114,314.75**

Other revenue from Canada (CAD)			
Item	**Number**	**Price/Unit**	**Total Revenue**
TEFL Upgrade - Single Module	1	$225.00	**$225.00**

SALES - OUTSIDE OF CANADA

Student enrollment by month (Outside of Canada)					
Month		**Dec**	**Jan**	**Feb**	**Total Enrollment**

100-Hour		0	0	0	0
120-Hour		13	8	12	33
150-Hour		8	4	10	22
Total			**12**	**22**	**55**
Revenue (CAD)		**$32,925.96**	**$18,918.38**	**$37,301.89**	**$89,146.23**

Other revenue from outside of Canada (CAD)			
Item	**Number**	**Price/Unit**	**Total Revenue**
TEFL Upgrade - Single Module	7	$700.00	**$3,348.33**

REFUNDS

Refunds from Canadian sales (CAD)			
Item	**Number**	**Price/Unit**	**Refund Amount**
Partial refund	0	-	**$0.00**
Full Refund	1	-	**$2,007.25**
Total	**1.00**	-	**$2,007.25**

Refunds from sales outside of Canada (CAD)			
Item	**Number**	**Price/Unit**	**Refund Amount**
Partial refund	2	-	**$895.98**
Full Refund	3	-	**$4,579.66**
Total	**5.00**	-	**$5,475.64**

ROYALTIES

The chart below outlines the total sales and the royalties due to the University of Toronto OISE for all Canadian sales. For a breakdown of students' payment details, please see Appendix A.

Royalties from Canadian sales (CAD)			
	Total Revenue for Quarter (CAD)	**Royalty Percentage**	**Total Royalties for Quarter (CAD)**
Course Sales (after refunds)	$112,307.50	30%	$33,692.25
Other Revenue - Single Module	$225.00	50%	$112.50
Total Revenue for Quarter	**$112,532.50**	-	**$33,804.75**

The chart below outlines the total sales and the royalties due to the University of Toronto OISE for all sales outside of Canada. **All sales outside of Canada are charged in USD and are converted into CAD as the default currency in Shopify is CAD, therefore all student payments are sent to our accounts in CAD.** For a breakdown of students' payment details, please see Appendix A.

Royalties from sales outside Canada (CAD)			
	Total Revenue for Quarter (CAD)	**Royalty Percentage**	**Total Royalties for Quarter (CAD)**
Course Sales (after refunds)	$83,670.59	30%	$25,101.18
Other Revenue - Single Module	$3,348.33	50%	$1,674.17
Total Revenue for Quarter	**$87,018.92**	-	**$26,775.34**

Appendix A

Please see the spreadsheets below:

[OISE] Dec 24-Feb 25 _ Appendix v3.xlsx

STEP 1 – Notification to Kesson of No Agreement Transfer

Email

Subject: Response to Proposed Options

To: David Frey, TLN Kesson (New Purchaser)

Dear Dave,

Thank you for outlining the three options and for your expressed willingness to explore creative solutions.

Unfortunately, each of the options presented shares a common and unacceptable condition: they require the University of Toronto, as represented by OISE Continuing & Professional Learning, to re-earn and pay back revenues we have already rightfully earned. This fundamentally contradicts the principles of a fair and responsible partnership.

To be clear, this is not our debt to pay, and we are not in a position to enter any agreement—renewal or otherwise—that perpetuates this burden.

It is with genuine regret that I must advise that our decade-long collaboration will come to a close. We are proceeding with the early termination of our agreement and will work directly with Pluribus to conclude the relationship on terms that protect our learners and institutional interests.

On behalf of OISE Continuing & Professional Learning, University of Toronto, I extend my sincere wishes to you and TLN Kesson as you move forward on your next entrepreneurial chapter.

Warm regards,

Elisabeth

STEP 2 – Notification to Pluribus Early Termination of Agreement

Email

Subject: Formal Notice of Early Termination and Request for Asset Transfer

To: Pluribus Technologies, CEO

Dear Diane,

OISE Continuing & Professional Learning
Agreement Termination DRAFT

Following consultation with our legal and administrative teams, and further to recent correspondence regarding the proposed assignment of the agreement to a new owner, this email confirms the Office of OISE Continuing & Professional Learning (OISE CPL) position and outlines next steps.

As of today, we are initiating **early termination** of the Master Agreement between the Governing Council of the University of Toronto (as represented by OISE) and Kesson Group Inc. (operating as Teach Away), dated August 21, 2020.

This decision is based on:

1. **Material breach** of the agreement, namely non-payment of royalties owed to the University of Toronto, including but not limited to the amounts identified as outstandin; and
2. **Pluribus' creditor protection status** and related proceedings under the Companies' Creditors Arrangement Act (CCAA), which render future engagement infeasible.

While the agreement was set to conclude in August 2025, our position—grounded in the agreement's terms and conditions—is that early termination is warranted and required to protect the interests of the University, our office and our learners.

To that end, we are requesting that the actions outlined in the attached Annex 1 be completed no later than **April 30, 2025**, as part of the wind-down process.

Please confirm receipt of this email and provide a response by **April xx, 2025**, indicating your intent to comply. Should we not receive a timely response or fulfillment of these requests, we will proceed with all necessary steps to secure our property and recover funds owed.

Sincerely,

Elisabeth

Annex 1 – Agreement Termination: Administrative Wind-Down Pluribus Technologies and OISE Continuing & Professional Learning

To accompany the early termination notice regarding the Master Agreement between the University of Toronto (OISE) and Pluribus Technologies / Teach Away

Immediate Actions Required - Deadline: April xx, 2025

1. **Cease All New Registrations**

   - ☐ Deactivate all public-facing registration platforms including **Shopify storefronts**, course landing pages, and any third-party promotional tools listing or referencing UofT, OISE, OISE Continuing & Professional Learning courses and programs.
   - ☐ Provide written confirmation that no further registrations will be processed, and that all registration access points have been disabled.

2. **Transfer of Platform Access**

    - ☐ **Litmos Learning Management System (LMS)**:
        - ☐ Transfer full administrative access to OISE Continuing Professional Learning
        - ☐ Deliver administration credentials, license transfer documentation, and any custom configuration documentation.
    - ☐ **Spotify Registration and Payment Platform**:
        - ☐ Transfer full administrative access and export complete learner registration data for UofT, OISE, OISE Continuing & Professional Learning programs.

3. **Return of All Program, Course and Marketing Assets**

    - ☐ Transfer of all course development files including:
        - SCORM packages
        - Articulate Storyline source files
        - Instructor toolkits, guides, and branding assets
    - ☐ **Transfer** all **marketing materials** created or used to promote UofT, OISE, OISE Continuing & Professional Learning programs, including brand-aligned materials such as flyers, web banners, social media graphics, email templates, and promotional videos
    - ☐ Confirm that the source files for all program, course and marketing assets are returned in usable and editable format to support uninterrupted delivery (e.g. Articulate, Adobe InDesign, Illustrator, Canva, Figma, etc.)
    - ☐ Confirm that these materials will no longer be used or disseminated following termination

4. **Learner Data and Record Transfer (7-Year Requirement)**

    - ☐ Provide a secure export of all learner files covering the **last 7 years**, including:
        - Full name, email, registration dates
        - Course/module completions, grades, certifications
        - Records of withdrawals, refunds, or accommodations
    - ☐ This transfer is required under both University governance standards, professional licensing standards and CRA tax documentation requirements.

5. **Accounting and Final Payment**

    - ☐ Confirm final payment amount required to cure the current breach.
    - ☐ Provide a full reconciliation of all invoiced amounts vs. payments received, including:
        - ☐ Any stayed amounts
        - ☐ Outstanding balances
        - ☐ Final payment date confirmation

6. **Certification Integrity Assurance**

- ☐ Pluribus must provide a **signed Certification Integrity Statement** confirming the following:
  - "Pluribus Technologies and its subsidiaries, including Teach Away, affirm that no credentials or certificates have been issued independently of OISE, University of Toronto and that no OISE, University of Toronto-branded certifications or credentials will be issued moving forward. All credentialing activities to date have been under the direction of OISE and the University of Toronto, and all records and templates related to certification have been returned or destroyed."

7. **Acknowledgement of Termination**

- ☐ A signed statement from Pluribus confirming:
  - ☐ Termination of the agreement effective **April xx, 2025**
  - ☐ No further business activities will be conducted under the agreement
  - ☐ All required data, payments, and assets have been returned
- ☐ This document will conclude OISE's administrative file on the matter.

Part 3 – Website Statement

Program Update: A New Chapter for the OISE TEFL Certificate

The **OISE TEFL (Teaching English as a Foreign Language) Certificate Program** is entering an exciting new chapter.

As of [Insert Date], the Ontario Institute for Studies in Education (OISE), University of Toronto will assume direct oversight for the management and delivery of the TEFL program. This marks the conclusion of our previous delivery arrangement.

When the TEFL program was first launched in 2012, OISE CPL partnered with Teach Away to ensure global reach and accessibility as we did not have the technology infrastructure required to meet our vision at that time. Fast forward to today, with far improved and available in-house platforms and technology infrastructure, we are well positioned to bring this program under OISE CPL's direct care—ensuring it reflects the high professional learning standards and learner experience our community expects.

What This Means for You:

- **If you are currently enrolled**, rest assured:
  - You will receive ongoing support as we transition operations.
  - Certificates issued upon completion will continue to reflect OISE CPL's commitment to excellence.

- **If you are exploring the program**, exciting updates are on the way:
  - A renewed and enhanced TEFL experience is in development—featuring updated content and a streamlined learning platform.
  - You're invited to join our waitlist to be the first to hear when enrollment opens. [Insert waitlist link or instructions]

We remain deeply committed to your professional growth and thank you for your patience during this period of renewal. Your learning is paramount, and we look forward to welcoming you into the next chapter of TEFL education.

For support or questions, please contact oise.cpl@utoronto.ca.

From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Subject: Re: OISE TEFL ACTION REQUIRED
To: "OISE Dean" <dean.oise@utoronto.ca> "Hanadi Abdullah" <hanadi.abdullah@utoronto.ca> "Michael Cassidy" <michael.cassidy@utoronto.ca>
Sent: Wed, 16 Apr 2025 13:33:11 -0400 (Wed, 16 Apr 2025 17:33:11 GMT)

Thanks, Denise.

Any communications regarding CPL programming and general queries etc. can be directed to our email: oise.cpl@utoronto.ca and there is team monitoring of that email and appropriate triage is applied for follow-up.

With the email /comms thread below, I am looping in @Hanadi Abdullah and @Michael Cassidy who have oversight on this program area currently.

Thanks!
Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: OISE Dean <dean.oise@utoronto.ca>
Date: Wednesday, April 16, 2025 at 1:26 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Subject: Fw: OISE TEFL ACTION REQUIRED

HI Elisabeth,
Not sure why folks keep copying all OISE Leadership on these kinds of things but this is the second time in the last while that this has happened. Who should I forward this to in CPL?
Thanks,
Denise

From: FIPPA s.21
Sent: Wednesday, April 16, 2025 1:04 PM
To: FIPPA s.21 Creso Sa <c.sa@utoronto.ca>; Joseph Flessa <joseph.flessa@utoronto.ca>; OISE Dean <dean.oise@utoronto.ca>; Helen Huang <helenl.huang@utoronto.ca>; Jen Gilbert <jen.gilbert@utoronto.ca>; Nyla Maharaj from Teach Away <teflonline@teachaway.com>; Sepehr Nasri from TEFL Support <teflsupport@teachaway.com>
Subject: OISE TEFL ACTION REQUIRED

You don't often get email from [redacted]. Learn why this is important

Dear Dean Walker,
I am hoping that you can help me. I registered my sister in law for one of the OISE TEFL remote study 150

hour courses and inadvertently there were 2 courses in my cart when I checked out.

I am trying to get a refund for the one course that was purchased in error.

I have sent now 7 emails and 4 support requests for a resolution to this issue and have had no response beyond " I have given this to my colleague " last Tuesday April 8th from Nyla Maharaj from TeachAway.

Total silence after that.

This does not reflect well on your organisation or your program.

Could you please connect me with the person who can help me?

You should also know that the address on the confirmation email and on the website and on google maps for the TEFL program is wrong - it is NOT located at 111 Peter Street Suite 503 as I went there to see if someone could help me.

Your assistance in this matter is greatly appreciated.

FIPPA s.21

Docusign Envelope ID: 7C1920F9-0956-42BA-95EE-EE696CE0A010

FORM 4

Notice by Kesson Group Inc. to Disclaim or Resiliate an Agreement

To: Ontario Institute for Studies in Education of the University of Toronto
252 Bloor Street West
Toronto, ON M5S 1V6

with a copy to:

Aird & Berlis LLP
Kyle B. Plunkett
kplunkett@airdberlis.com

Take notice that:

1. Proceedings under the *Companies' Creditors Arrangement Act* (the "**Act**") in respect of Kesson Group Inc. ("**Debtor Company**") were commenced on the 17th day of December, 2024.

2. In accordance with subsection 32(1) of the Act, the Debtor Company gives you notice of its intention to disclaim or resiliate the following agreement, including the schedules referenced below.

- Master Agreement of Course Development & Licensing dated August 21, 2020, among Kesson Group Inc. and The Governing Council of the University of Toronto, as represented by the Ontario Institute for Studies in Education, and all documents and agreements entered into in connection therewith.

3. In accordance with subsection 32(2) of the Act, any party to the agreement may, within 15 days after the day on which this notice is given and with notice to the other parties to the agreement and to B. Riley Farber Inc., in its capacity as monitor in the CCAA proceedings, apply to court for an order that the agreement is not to be disclaimed or resiliated.

4. In accordance with paragraph 32(5)(a) of the Act, if no application for an order is made in accordance with subsection 32(2) of the Act, the agreement shall be disclaimed or resiliated on May 16, 2025, being 30 days after the day on which this notice has been given.

Docusign Envelope ID: 7C1920F9-0956-42BA-95EE-EE696CE0A010

Dated at Toronto, Ontario, this 16th day of April, 2025.

Kesson Group Inc.

By: DocuSigned by: Diane Pedreira 193A95E032674A8...

Name: Diane Pedreira
Title: Authorized Signatory

I have authority to bind the Corporation.

The monitor approves the proposed disclaimer or resiliation.

Dated at Toronto, Ontario this 16th day of April, 2025.

B. Riley Farber Inc., solely in its capacity as Monitor of Kesson Group Inc. and not in its personal or corporate capacity

By: DocuSigned by: EA98D6F40D5C456...

Name: Hylton Levy
Title: Senior Managing Director

Subject: Acknowledgement of Agreement Disclaimer and Request for Immediate Transition Coordination

To: Mahar, Kyla <kmahar@millerthomson.com ; Diane Pedreira <diane@pluribustechnologies.com>

Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com> pluribus@brileyfin.com

Dear Ms. Mahar, Ms. Pedreira,

In response to the formal **Notice to Disclaim** issued by Kesson Group Inc. under Section 32(1) of the Companies' Creditors Arrangement Act (CCAA), I am writing to confirm the University of Toronto's position and to outline next steps.

We acknowledge receipt of the notice dated **April 16, 2025**, and understand that the **Master Agreement dated August 21, 2020** will be disclaimed effective **May 16, 2025**, unless otherwise contested. The University, as represented by the Office of OISE Continuing & Professional Learning, will not be filing an objection.

In light of this forthcoming termination, we expect Pluribus Technologies, as the current operational party, to coordinate an orderly wind-down and fulfill all remaining administrative and academic obligations under the agreement. To that end, we request that the actions outlined in the attached **Annex 1** be completed no later than **May 1, 2025** to ensure continuity of support for currently enrolled learners and secure the return of institutional assets and records.

Additionally, it has come to our attention that enrolments may have continued under the agreement despite its pending disclaimer. Any funds collected from learners for programs or services that Kesson-Pluribus is no longer authorized to deliver under the terms of this agreement must be fully reimbursed. We expect Pluribus to take immediate action to notify these individuals and ensure refund processing is completed without delay. The University of Toronto bears no responsibility for these transactions and will not assume liability for undelivered services.

Please confirm receipt of this communication and provide a response by **April 28, 2025**, indicating your intent to comply and your availability to meet, to support final coordination.

Sincerely,

Dr. Elisabeth Rees-Johnstone
Executive Director
Continuing & Professional Learning
OISE, University of Toronto

Annex 1 – Agreement Wind-Down: Administrative Requirements

Pluribus Technologies and OISE Continuing & Professional Learning

To accompany the disclaimer of the Master Agreement between the University of Toronto (as represented by OISE Continuing & Professional Learning) and Kesson Group Inc., now under administration by Pluribus Technologies.

Immediate Actions Required – Deadline: May 1, 2025

1. Cease All New Registrations

- Deactivate all public-facing registration platforms including Shopify storefronts, landing pages, or third-party listings referencing UofT, OISE, or OISE Continuing & Professional Learning.

- Provide written confirmation that no further registrations will be processed and that **all** access points have been disabled.

2. Return of All Program, Course, and Marketing Assets

- Deliver SCORM packages, Articulate Storyline source files, and instructor toolkits.
- Transfer all marketing materials and editable source files (e.g., InDesign, Illustrator, Canva, Figma).
- Confirm that no materials will be reused or redistributed.

3. Learner Data and Record Transfer (7-Year Requirement)

- Provide secure export of learner records from the past 7 years, including enrolment data, completions, certifications, and financial transactions.

4. Accounting and Final Payment

- Confirm outstanding amount due and timeline for final payment.

- Provide reconciliation of invoiced vs. paid amounts, including stayed and unpaid balances.

5. Certification Integrity Assurance

- Submit signed statement confirming no independent issuance of OISE Continuing & Professional Learning/OISE/University of Toronto certificates, and that all credentialing activities were conducted under OISE's direction.

6. Acknowledgement of Termination

- Submit a signed statement confirming:
    - Effective termination of the agreement as of **May 16, 2025**
    - Cessation of all business activities under the agreement
    - Return of all required data, assets, and payments

7. Reimbursement of Post-Disclaimer Enrolments

- Identify all learners who were enrolled or paid fees after the Notice to Disclaim was issued on April 16, 2025.
- Provide a complete list of impacted learners, including names, payment dates, and amounts collected
- Confirm that full refunds have been issued to all such learners and that no additional payments have been or will be collected.
- Confirm that no program delivery or certification will be offered to these individuals under the disclaimed agreement.

From: Mahar, Kyla <kmahar@millerthomson.com>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract
To: "Elisabeth Rees-Johnstone" <e.rees.johnstone@utoronto.ca> "Diane Pedreira" <diane@pluribustechnologies.com>
CC:"Nancy Fahy" <Nancy.Fahy@pluribustechnologies.com> "Rhodes, Gina" <grhodes@millerthomson.com> "Tarola, Jaclyn" <jtarola@millerthomson.com> "hlevy@brileyfin.com" <hlevy@brileyfin.com> "rwilliams@brileyfin.com" <rwilliams@brileyfin.com> "pluribus@brileyfin.com" <pluribus@brileyfin.com> "Michael Cassidy" <michael.cassidy@utoronto.ca> "Maggie Xu" <m.xu@utoronto.ca>
Sent: Mon, 05 May 2025 20:27:20 -0400 (Tue, 06 May 2025 00:27:20 GMT)
Attachment 1: 84661450_2.pdf

You don't often get email from kmahar@millerthomson.com. Learn why this is important

Ms. Rees-Johnstone,

Further to my email below, enclosed please find correspondence to you dated May 5, 2025.

Please provide the information to allow us to give access to the dropbox, transfer Articulate and redirect student emails and requests.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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From: Mahar, Kyla <kmahar@millerthomson.com>
Sent: Monday, April 28, 2025 5:46 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>; Diane Pedreira <diane@pluribustechnologies.com>

Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Michael Cassidy <michael.cassidy@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract

Ms. Rees-Johnstone,

We acknowledge receipt of your email communication below and my client is in the process of compiling the necessary information to respond. We expect to respond to you by the end of this week.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Friday, April 25, 2025 3:18 PM
To: Mahar, Kyla <kmahar@millerthomson.com>; Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Michael Cassidy <michael.cassidy@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>
Subject: [**EXT**] Re: Kesson Group Inc. - Notice to Disclaim Contract

Dear Ms. Mahar, Ms. Pedreira,

In response to the formal **Notice to Disclaim** issued by Kesson Group Inc. under Section 32(1) of the Companies' Creditors Arrangement Act (CCAA), I am writing to confirm the University of Toronto's position and to outline next

steps.

We acknowledge receipt of the notice dated **April 16, 2025**, and understand that the **Master Agreement dated August 21, 2020** (Agreement) will be disclaimed effective **May 16, 2025**, unless otherwise contested. The University, as represented by the Office of OISE Continuing & Professional Learning, is reserving its right to contest the disclaimer pending urgent discussion of the items set out below.

In light of this proposed termination, we expect Kesson Group Inc. and Pluribus Technologies (Kesson/Pluribus) to coordinate an orderly wind-down and fulfill all remaining administrative and academic obligations under the agreement. To that end, we request that there is meaningful progress towards completing the actions outlined in the attached **Annex 1** by **May 1, 2025** to ensure continuity of support for currently enrolled learners and secure the return of institutional assets and records.

Additionally, it has come to our attention that Kesson/Pluribus may have initiated new enrolments, in reliance on University of Toronto intellectual property, under the Agreement despite its pending disclaimer. Any funds collected from learners for programs or services that Kesson/Pluribus is no longer authorized to deliver under the terms of this agreement must be fully reimbursed to those learners. We expect Kesson/Pluribus to take immediate action to notify these individuals and ensure refund processing is completed without delay.

Please confirm receipt of this communication and provide a response by **April 28, 2025**, indicating your intent to comply and your availability to meet, to support final coordination.

Sincerely,

Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Mahar, Kyla <kmahar@millerthomson.com>
Date: Wednesday, April 16, 2025 at 3:41 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Cc: Diane Pedreira <diane@pluribustechnologies.com>, Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>
Subject: Kesson Group Inc. - Notice to Disclaim Contract

You don't often get email from kmahar@millerthomson.com. Learn why this is important

Ms. Elisabeth Rees-Johnstone,

We are legal counsel for Pluribus Technologies Corp. ("**Pluribus**") and its subsidiaries including Kesson Group Inc. ("**Kesson**" and collectively, the "**Applicants**"), in connection with proceedings before the Ontario Superior Court of Justice (Commercial List) (the "**Court**") commenced under the *Companies' Creditors Arrangement Act* (Canada) (the "**CCAA**").

On December 17, 2024, the Applicants were granted an Initial Order under the CCAA by the Court (as amended and

restated, the "**Initial Order**"). Pursuant to the Initial Order, among other things, B. Riley Farber Inc. was appointed as monitor of the Applicants (in such capacity, the "**Monitor**"). Pursuant to an Order of the Court dated December 23, 2024, the Court, among other things, approved a Sale and Investment Solicitation Process in respect of the Applicants and their assets (the "**SISP**"). Pursuant to the SISP, Kesson and certain other Applicants entered into an Asset Purchase Agreement dated February 28, 2025 (as amended, the "**Purchase Agreement**"), which was approved by the Court on March 14, 2025. Pursuant to the Purchase Agreement, the assets of Kesson will be sold to TLN Kesson Inc. (the "**Purchaser**") The transaction is expected to close by the end of next week.

We understand that the Purchaser of the assets of Kesson reached out to you to determine if terms could be reached pursuant to which they would take an assignment of the Master Agreement of Course Development & Licesning dated August 21, 2020 between Kesson and The Governing Council of the University of Toronto, as represented by the Ontario Institute for Studies in Education, and all documents and agreements entered into in connection therewith (the "**Contract**") and that terms were not able to be reached for such an assignment.

As a result, enclosed please find a Notice by Kesson Group Inc. to Disclaim the Contract in accordance with subsection 32(1) of the CCAA.

Please let me know if you have any questions.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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[EXTERNAL EMAIL / COURRIEL EXTERNE]

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Veuillez rapporter la présence de pièces jointes, de liens ou de demandes d'information sensible qui vous semblent suspectes.

Attachment 1

MILLER THOMSON LLP
SCOTIA PLAZA
40 KING STREET WEST, SUITE 6600
P.O. BOX 1011
TORONTO, ON M5H 3S1
CANADA

T 416.595.8500
F 416.595.8695

MILLERTHOMSON.COM

May 5, 2025

Kyla Mahar
Direct Line: +1 416.597.4303
kmahar@millerthomson.com

File No. 0229417.0059

Sent via E-mail
(e.rees.johnstone@utoronto.ca)

University of Toronto
252 Bloor Street West
Toronto, ON M5S 1V6

Attention: Ms. Elisabeth Rees-Johnstone

Dear Ms. Rees-Johnstone:

Re: Kesson Group Inc.

As you are aware, we are legal counsel for Pluribus Technologies Corp. ("**Pluribus**") and its subsidiaries including Kesson Group Inc. ("**Kesson**" or "**Teach Away**" and collectively, the "**Applicants**"), in connection with proceedings before the Ontario Superior Court of Justice (Commercial List) (the "**Court**") commenced under the *Companies' Creditors Arrangement Act* (Canada) (the "**CCAA**"). We are in receipt of your email sent April 25, 2025 including Annex 1 in response to the Notice of Disclaimer dated April 16, 2025 of the Master Agreement dated August 21, 2020 between Kesson and The Governing Council of the University of Toronto, as represented by the Ontario Institute for Studies in Education. We take this opportunity to respond to the items identified in Annex 1 in the chart below.

Please note that in order to grant access to DropBox to download the data that has been compiled, we require contact information for individual(s) that should access DropBox. Once received we will provide access and keep the DropBox active until May 16, 2005. In addition, we require a specific contact person that will have an Articulate account for ownership to be transferred of Articulate/Rise 360. This person needs to already have their own account. Please provide this information as soon as possible to facilitate the transfer. In addition, please provide us with the name and email address of who you would like all student emails and requests directed to going forward.

OISE REQUESTS	TEACH AWAY RESPONSE
1. Cease All New Registrations	
a. Deactivate all public-facing registration platforms including Shopify storefronts, landing pages, or third-party listings referencing UofT, OISE, or OISE Continuing & Professional Learning.	This has been done.

2. Return of All Program, Course, and Marketing Assets	
b. Deliver SCORM packages, Articulate Storyline source files, and instructor toolkits.	• SCORM and other course files here: [redacted] tfz8zf&dl=0 • Articulate – require email for OISE person to transfer ownership; no way of downloading
c. Transfer all marketing materials and editable source files (e.g., InDesign, Illustrator, Canva, Figma).	Marketing data was created and owned by Teach Away
d. Confirm that none of these materials will be reused or redistributed.	Confirmed
3. Learner Data and Record Transfer (7-Year Requirement)	
a. Provide secure export of learner records from the past 7 years, including enrolment data, completions, certifications, and financial transactions.	Learner Records Here: [redacted] 0 Financial Records Here: [redacted]
4. Accounting and Final Payment	
a. Confirm outstanding amount due and timeline for final payment.	March 1st to April 15th report has been sent to OISE. We are waiting on an invoice and would request that you provide the invoice by May 15, 2025 to ensure it is paid prior to the conclusion of the CCAA Proceedings.
b. Provide reconciliation of invoiced vs. paid amounts, including stayed and unpaid balances.	Under Financial Records: [redacted]

5. Certification Integrity Assurance	
a. Submit signed statement confirming no independent issuance of OISE Continuing & Professional Learning/OISE/University of Toronto certificates, and that all credentialing activities were conducted under OISE's direction.	OISE has always generated the certificates. Teach Away has never had the OISE template for certificates and they have always been issued by OISE.
6. Reimbursement of Post-Disclaimer Enrolments	
a. Identify all learners who were enrolled or paid fees after December 16, 2025.	Review financial records above
b. Provide a complete list of impacted learners, including names, payment dates, and amounts collected	Impacted Learners - [redacted]
c. Confirm that full refunds have been issued to all such learners and that no additional payments have been or will be collected.	Refunds have been made for learners that registered on or after April 15, 2025 given the issuance of the disclaimer.
d. Confirm that no program delivery or certification will be offered to these individuals under the disclaimed agreement.	Confirmed

We look forward to receiving the information necessary to provide the transfer of the items above. Please let me know if you have any questions.

Yours truly,
MILLER THOMSON LLP
Per:

Kyla Mahar Partner

From: Mahar, Kyla <kmahar@millerthomson.com>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract
To: "Elisabeth Rees-Johnstone" <e.rees.johnstone@utoronto.ca> "Michael Cassidy" <michael.cassidy@utoronto.ca> "Diane Pedreira" <diane@pluribustechnologies.com>
CC:"Nancy Fahy" <Nancy.Fahy@pluribustechnologies.com> "Rhodes, Gina" <grhodes@millerthomson.com> "Tarola, Jaclyn" <jtarola@millerthomson.com> "hlevy@brileyfin.com" <hlevy@brileyfin.com> "rwilliams@brileyfin.com" <rwilliams@brileyfin.com> "pluribus@brileyfin.com" <pluribus@brileyfin.com> "Maggie Xu" <m.xu@utoronto.ca>
Sent: Thu, 22 May 2025 12:50:10 -0400 (Thu, 22 May 2025 16:50:10 GMT)

Thank you for the clarification.

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Thursday, May 22, 2025 12:47 PM
To: Mahar, Kyla <kmahar@millerthomson.com>; Michael Cassidy <michael.cassidy@utoronto.ca>; Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Inc. - Notice to Disclaim Contract

Apologies; to clarify: There is no requirement on our end for Pluribus/Kesson to prepare and send an outbound direct communication to learners at this time. If there are plans to continue to respond to any future inbound inquiries, then redirection to our office, as outlined, is appropriate.

Many thanks,
Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Mahar, Kyla <kmahar@millerthomson.com>
Date: Thursday, May 22, 2025 at 12:22 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Michael Cassidy <michael.cassidy@utoronto.ca>, Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>, hlevy@brileyfin.com <hlevy@brileyfin.com>, rwilliams@brileyfin.com <rwilliams@brileyfin.com>, pluribus@brileyfin.com <pluribus@brileyfin.com>, Maggie Xu <m.xu@utoronto.ca>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract

Ms. Rees-Johnstone,

Just to clarify, you do not want the proposed email communication sent out to learners. Your email and your colleagues email seem to be saying contradictory things so I want to clarify. Thank you.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
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kmahar@millerthomson.com

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From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Thursday, May 22, 2025 12:04 PM
To: Michael Cassidy <michael.cassidy@utoronto.ca>; Mahar, Kyla <kmahar@millerthomson.com>; Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Inc. - Notice to Disclaim Contract

Thank you @Michael Cassidy for sending along to @Mahar, Kyla attention for **Item 2b**.

Regarding the remaining items:

Item 5: Certification Integrity Assurance

Please use the following copy for the written acknowledgement.

- No certificates bearing OISE, University of Toronto, or OISE Continuing & Professional Learning branding have been or will be issued by Teach Away, Kesson or Pluribus; and
- All credentialling activities have solely occurred under the direction of OISE

Item 6: Reimbursement of Learners Post-CCAA Protection

Thank you for the clarification on learner refund status and that no communication to learners was prepared or issued to learners by Pluribus/Kesson. Thank you as well for the proposed communications redirection; we can confirm that no communication redirection is required.

Many thanks,

Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Michael Cassidy <michael.cassidy@utoronto.ca>
Date: Wednesday, May 21, 2025 at 5:16 PM
To: Mahar, Kyla <kmahar@millerthomson.com>, Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>, hlevy@brileyfin.com <hlevy@brileyfin.com>, rwilliams@brileyfin.com <rwilliams@brileyfin.com>, pluribus@brileyfin.com <pluribus@brileyfin.com>, Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Inc. - Notice to Disclaim Contract

Dear Kyla Mahar, On behalf of Elisabeth and as per the email thread below:

Please see the two attached files that detail the missing components to the file share.

Item 2:

1. **Course Assets Missing File**
2. **Missing Financial Information Detailed**

Item 6: We agree that the Email note you've drafted to learners is appropriate and would be of benefit to share with learners.

Many thanks, Michael

MICHAEL CASSIDY
Associate Director

Office of Continuing & Professional Learning
Research Partnership and Innovation
Ontario Institute for Studies in Education
University of Toronto

Michael.Cassidy@utoronto.ca
[redacted]

From: Mahar, Kyla <kmahar@millerthomson.com>
Date: Tuesday, May 20, 2025 at 11:17 AM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>, hlevy@brileyfin.com <hlevy@brileyfin.com>, rwilliams@brileyfin.com <rwilliams@brileyfin.com>, pluribus@brileyfin.com <pluribus@brileyfin.com>, Michael Cassidy <michael.cassidy@utoronto.ca>, Maggie Xu <m.xu@utoronto.ca>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract

Some people who received this message don't often get email from kmahar@millerthomson.com. Learn why this is important

Dear Ms. Rees-Johnstone,

Thank you for your email below, I have provided our clients' answers in red below.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Wednesday, May 14, 2025 10:42 PM
To: Mahar, Kyla <kmahar@millerthomson.com>; Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Michael Cassidy <michael.cassidy@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Inc. - Notice to Disclaim Contract

Dear Ms. Mahar,

I am following up on my email from May 7 acknowledging receipt of the Dropbox access links and our identification of several outstanding items. Thank you again for your continued cooperation during this transition period.

We'd like to address the following outstanding items:

Item 2b: Return of All Program, Course, and Marketing Assets *(Deliver SCORM packages, Articulate Storyline source files, and instructor toolkits.)*

We can confirm receipt of the majority of course module files. However, upon review, it appears that some course modules have not yet been received. We are currently cross-referencing the files provided against the full program module list and will follow-up shortly with details on any discrepancies.

We kindly request delivery of the remaining course assets.

If you can please provide the list of any course assets you are of the view are missing ASAP and in any event by May 22, 2025. The Court authorized the bankruptcy of 1000889960 Ontario Inc. (formerly Kesson Group Inc.) ("Kesson") and it is expected that this will occur prior to the end of May. To the extent something was missed, our client will try and locate the missing materials to send to you prior to the bankruptcy.

Item 5: Certification Integrity Assurance

While we acknowledge your prior statement that OISE has always generated and issued certificates, we respectfully request a signed written assurance confirming the following:

- No certificates bearing OISE, University of Toronto, or OISE Continuing & Professional Learning branding have been or will be issued by Teach Away, Kesson or Pluribus; and
- All credentialling activities have solely occurred under the direction of OISE

This confirmation is essential to maintain the academic integrity of the program and its learners.

Our client is prepared to provide this confirmation. If you have a form, please provide it. If not, we will simply copy the confirmations above and set it out in written acknowledgment. Please advise.

Item 6: Reimbursement of Learners Post-CCAA Protection

We appreciate your confirmation that refunds have been issued to learners who registered on or after April 15, 2025. For clarity, we seek further information regarding learners who registered between December 17 2024 (the date of CCAA protection) and April 14 2025, particularly those who:

- Did not complete the program, or
- Did not receive full delivery of services.

Please confirm whether refunds have been issued – or are intended to be issued – to these learners.

Additionally, we would appreciate receiving a copy of any communications that were issued – or planned to be issued – to these learners. Specifically, any communications addressing refunds, program status, or available resolution options for those enrolled after the commencement of CCAA protection.

While we recognize that the University is not a party to Kesson's transactions with these learners and cannot enforce their resolution, we remain committed to ensuring learners are not adversely impacted by the transition and appreciate your continued cooperation on these matters.

With respect to any learners that registered during the CCAA proceedings and prior to the disclaimer of the contract, refunds will not be issued. Unfortunately the sale transaction did not result in sufficient funds to repay the Applicants' secured creditor in full and therefore there are no funds available to pay any unsecured creditors.

Kesson has not issued any formal communication to the learners. Rather it has directed any person that has asked questions to oise.cpl@utoronto.ca.

To the extent it would be of assistance, Kesson is prepared to send the following as an email to the learners:

> Dear [Recipient],
> Please note that the OISE TEFL program is no longer being supported by Teach Away.
> For any inquiries or further information, please contact the University of Toronto directly at oise.cpl@utoronto.ca.

Please advise if you would like this email sent.

Kind regards,

Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Date: Wednesday, May 7, 2025 at 4:31 PM
To: Mahar, Kyla <kmahar@millerthomson.com>, Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>, hlevy@brileyfin.com <hlevy@brileyfin.com>, rwilliams@brileyfin.com <rwilliams@brileyfin.com>, pluribus@brileyfin.com <pluribus@brileyfin.com>, Michael Cassidy <michael.cassidy@utoronto.ca>, Maggie Xu <m.xu@utoronto.ca>
Subject: Re: Kesson Group Inc. - Notice to Disclaim Contract

Dear Ms. Mahar,
Thank you for your detailed response dates May 5 2025, regarding the wind down of the Master Agreement between Pluribus Technologies Corp./Kesson Group Inc. ("Kesson") and the University of Toronto ("University") as represented by OISE Continuing & Professional Learning. We acknowledge receipt of the materials and Dropbox links provided.

We have begun internal processing of the files and will initiate an invoice for the March 1 – April 15 2025 royalty period, as requested, by May 15 2025.

To facilitate transfer of the Articulate/Rise 360 account, please assign ownership to the following OISE team member: **Samantha Presutto Quercia** at the email address of oise.cpl@utoronto.ca.

We also confirm that any remaining learner inquiries can be directed to: oise.cpl@utoronto.ca.

Outstanding Items

Item 5: Certification Integrity Assurance
While we acknowledge your statement that OISE has always generated and issued certificates, we respectfully request a signed written assurance confirming the following:

- No OISE, University of Toronto, or OISE Continuing & Professional Learning branded certificates have been or will be issued by Teach Away, Kesson or Pluribus; and
- All credentialling activities have solely occurred under the direction of OISE

Item 6: Reimbursement of Learners Post-CCAA Protection

With respect to item 6, we note your confirmation that refunds were issued for learners who registered on or after April 15 2025. We would appreciate clarification regarding any learners who registered between December 17 2024 (the date of creditor protection) and April 14 2025, but did not complete the program or receive full delivery of services, and whether refunds have been issued or will be issued to these individuals.

We would further appreciate a copy of any communication that was issued – or is intended to be issued – to these learners, particularly those enrolled after the commencement of CCAA protection, regarding refunds, program status or resolution options.

While the University is not a party to Kesson's transactions with these learners and cannot enforce their resolution, we remain committed to ensuring learners are not adversely impacted by the transition and appreciate your cooperation in this regard.

Should any further clarification be required, we will be in touch.

Sincerely,

Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Mahar, Kyla <kmahar@millerthomson.com>
Date: Monday, May 5, 2025 at 8:30 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>, hlevy@brileyfin.com <hlevy@brileyfin.com>, rwilliams@brileyfin.com <rwilliams@brileyfin.com>, pluribus@brileyfin.com <pluribus@brileyfin.com>, Michael Cassidy <michael.cassidy@utoronto.ca>, Maggie Xu <m.xu@utoronto.ca>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract

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Ms. Rees-Johnstone,

Further to my email below, enclosed please find correspondence to you dated May 5, 2025.

Please provide the information to allow us to give access to the dropbox, transfer Articulate and redirect student emails and requests.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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From: Mahar, Kyla <kmahar@millerthomson.com>
Sent: Monday, April 28, 2025 5:46 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>; Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Michael Cassidy <michael.cassidy@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>
Subject: RE: Kesson Group Inc. - Notice to Disclaim Contract

Ms. Rees-Johnstone,

We acknowledge receipt of your email communication below and my client is in the process of compiling the necessary information to respond. We expect to respond to you by the end of this week.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Friday, April 25, 2025 3:18 PM
To: Mahar, Kyla <kmahar@millerthomson.com>; Diane Pedreira <diane@pluribustechnologies.com>
Cc: Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>; Rhodes, Gina <grhodes@millerthomson.com>; Tarola, Jaclyn <jtarola@millerthomson.com>; hlevy@brileyfin.com; rwilliams@brileyfin.com; pluribus@brileyfin.com; Michael Cassidy

<michael.cassidy@utoronto.ca>; Maggie Xu <m.xu@utoronto.ca>
Subject: [**EXT**] Re: Kesson Group Inc. - Notice to Disclaim Contract

Dear Ms. Mahar, Ms. Pedreira,

In response to the formal **Notice to Disclaim** issued by Kesson Group Inc. under Section 32(1) of the Companies' Creditors Arrangement Act (CCAA), I am writing to confirm the University of Toronto's position and to outline next steps.

We acknowledge receipt of the notice dated **April 16, 2025**, and understand that the **Master Agreement dated August 21, 2020** (Agreement) will be disclaimed effective **May 16, 2025**, unless otherwise contested. The University, as represented by the Office of OISE Continuing & Professional Learning, is reserving its right to contest the disclaimer pending urgent discussion of the items set out below.

In light of this proposed termination, we expect Kesson Group Inc. and Pluribus Technologies (Kesson/Pluribus) to coordinate an orderly wind-down and fulfill all remaining administrative and academic obligations under the agreement. To that end, we request that there is meaningful progress towards completing the actions outlined in the attached **Annex 1** by **May 1, 2025** to ensure continuity of support for currently enrolled learners and secure the return of institutional assets and records.

Additionally, it has come to our attention that Kesson/Pluribus may have initiated new enrolments, in reliance on University of Toronto intellectual property, under the Agreement despite its pending disclaimer. Any funds collected from learners for programs or services that Kesson/Pluribus is no longer authorized to deliver under the terms of this agreement must be fully reimbursed to those learners. We expect Kesson/Pluribus to take immediate action to notify these individuals and ensure refund processing is completed without delay.

Please confirm receipt of this communication and provide a response by **April 28, 2025**, indicating your intent to comply and your availability to meet, to support final coordination.

Sincerely,

Elisabeth

—
ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: Mahar, Kyla <kmahar@millerthomson.com>
Date: Wednesday, April 16, 2025 at 3:41 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Cc: Diane Pedreira <diane@pluribustechnologies.com>, Nancy Fahy <Nancy.Fahy@pluribustechnologies.com>, Rhodes, Gina <grhodes@millerthomson.com>, Tarola, Jaclyn <jtarola@millerthomson.com>
Subject: Kesson Group Inc. - Notice to Disclaim Contract

You don't often get email from kmahar@millerthomson.com. Learn why this is important

Ms. Elisabeth Rees-Johnstone,

We are legal counsel for Pluribus Technologies Corp. ("**Pluribus**") and its subsidiaries including Kesson Group Inc. ("**Kesson**" and collectively, the "**Applicants**"), in connection with proceedings before the Ontario Superior Court of Justice (Commercial List) (the "**Court**") commenced under the *Companies' Creditors Arrangement Act* (Canada) (the "**CCAA**").

On December 17, 2024, the Applicants were granted an Initial Order under the CCAA by the Court (as amended and restated, the "**Initial Order**"). Pursuant to the Initial Order, among other things, B. Riley Farber Inc. was appointed as monitor of the Applicants (in such capacity, the "**Monitor**"). Pursuant to an Order of the Court dated December 23, 2024, the Court, among other things, approved a Sale and Investment Solicitation Process in respect of the Applicants and their assets (the "**SISP**"). Pursuant to the SISP, Kesson and certain other Applicants entered into an Asset Purchase Agreement dated February 28, 2025 (as amended, the "**Purchase Agreement**"), which was approved by the Court on March 14, 2025. Pursuant to the Purchase Agreement, the assets of Kesson will be sold to TLN Kesson Inc. (the "**Purchaser**") The transaction is expected to close by the end of next week.

We understand that the Purchaser of the assets of Kesson reached out to you to determine if terms could be reached pursuant to which they would take an assignment of the Master Agreement of Course Development & Licesning dated August 21, 2020 between Kesson and The Governing Council of the University of Toronto, as represented by the Ontario Institute for Studies in Education, and all documents and agreements entered into in connection therewith (the "**Contract**") and that terms were not able to be reached for such an assignment.

As a result, enclosed please find a Notice by Kesson Group Inc. to Disclaim the Contract in accordance with subsection 32(1) of the CCAA.

Please let me know if you have any questions.

Regards,

Kyla

KYLA MAHAR
Partner

MILLER THOMSON LLP
Scotia Plaza
40 King Street West, Suite 6600
Toronto, Ontario | M5H 3S1
T +1 416.597.4303
kmahar@millerthomson.com

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Veuillez rapporter la présence de pièces jointes, de liens ou de demandes d'information sensible qui vous semblent suspectes.

From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Subject: Re: Support for OISE TEFL Students
To: "David Frey" <dave@teachaway.com> "Michael Cassidy" <michael.cassidy@utoronto.ca>
Sent: Wed, 07 May 2025 23:02:50 -0400 (Thu, 08 May 2025 03:02:50 GMT)

Hi Dave,

Thank you for your email and your stated concern for learners. As you are aware, the University of Toronto, as represented by OISE Continuing & Professional Learning, has not consented to the assignment of the TEFL Online delivery agreement to TLN Kesson. We are actively overseeing the transition process in accordance with our program administration accountabilities as per University policies and guidelines.

We acknowledge that TEFL learners have experienced confusion and disruption as a result of actions taken by Kesson Group, TLN Kesson and Pluribus Technologies Corp. To ensure accurate information and appropriate learner supports, please direct learner inquiries to oise.cpl@utoronto.ca.

We appreciate your continued cooperation in ensuring the remainder of this transition is handled with professionalism.

Warm regards,
Elisabeth

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: David Frey <dave@teachaway.com>
Date: Tuesday, May 6, 2025 at 9:39 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Michael Cassidy <michael.cassidy@utoronto.ca>
Subject: Support for OISE TEFL Students

Hi Elisabeth and Michael,

I hope you're both doing well.

We've been receiving a growing number of questions from students currently enrolled in the OISE TEFL program who are understandably concerned about what happens next. In the absence of an official update, we would like to ensure students are provided with accurate information and support during this transition, as they are contacting teachway for support.

Our sole intention is to act in the best interest of these students, who have invested considerable time and money into the program. I'm confident that you share this goal, and we remain ready to assist in any way we can to help ensure students are not left without guidance or recognition of their progress.

I've reached out a few times but haven't yet heard back. In the meantime, we will be directing student

inquiries to the general OISE CPL email address (oise.cpl@utoronto.ca). If there is a better point of contact for student concerns, please let me know and I'll update our communications accordingly.

I'm currently in Toronto and would be happy to meet tomorrow at your convenience if you're open to a brief conversation about how we can collectively ensure a smooth experience for students.

Warm regards,

Dave

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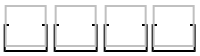


Dave Frey
CEO

e: dave@teachaway.com

Vancouver, BC

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From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Subject: TEFL ONLINE - Terms and Conditions with Learner FAQs
To: "Hanadi Abdullah" <hanadi.abdullah@utoronto.ca> "Michael Cassidy" <michael.cassidy@utoronto.ca> "Trisha Mazzotta" <trish.mazzotta@utoronto.ca> "Allison Houghton" <allie.houghton@utoronto.ca> "Maggie Xu" <m.xu@utoronto.ca> "Sravan Ghanta" <sravan.ghanta@utoronto.ca>
Sent: Wed, 07 May 2025 17:18:35 -0400 (Wed, 07 May 2025 21:18:35 GMT)
Attachment 1: TeachAway Refund Policy and Terms Conditions for Registration and Purchase.docx
Attachment 2: TEFL Online FAQs_Wind Down Transition.docx

Hi there,

Attached are the TEFL Online Terms and Conditions inclusive of refund policy. In consideration of these terms and conditions, also attached are ***DRAFT*** Learner FAQs – I just drew these up quickly to facilitate a few expected queries.

The T&C and draft FAQs should be refenced when updating our Virtual Assistance Service as well as for all program administration colleagues who may respond to a TEFL Online query. And they should inform future web landing page updates once we confirm the agreement is legally severed by EOD May 16.

Summary of T&C for ease of reference:

1. **Refund Policy**
    a. No refunds are provided after enrolment regardless of whether the learner complete the program
    b. Refunds are also not issued due to:
        i. Failing to complete within the required 365 days
        ii. Lack of platform access
        iii. Inactivity or absence
    c. All refund decisions are made solely by Teach Away/Pluribus
1. **Certificate Conditions**
    a. Learners must complete all course requirements within 365 days to be eligible for a certificate
    b. There is no entitlement to a certificate without full completion within the timeframe
    c. Teach Away disclaims responsibility for:
        i. Missed deadlines
        ii. Platform issues
        iii. Learner circumstances
3. **Responsibility & Liability**
    a. Teach Away assumes full responsibility for enrolment and payments
    b. The “Provider” (OISE) is only responsible for content and quality – and is not responsible not for enrolment or refunds
    c. Learners agreed to these conditions at time of registration and payment
4. **Program Availability**
    a. Teach Away does not guarantee course availability, access, or interrupted service
    b. Teach Away reserves the right to change or suspend the course without notice

Key message for CPL

- We did not process any payments and therefore cannot offer refunds
- All refund related inquires must be directed to Pluribus/TeachAway
- Our role is to support learners in:
    - Accessing learner records

Confirming certificate issuance
- Redirecting refund inquiries appropriately

@Michael Cassidy and @Hanadi Abdullah as you manage the data transfer of the gazillion records and prepare our folders, please ensure ready access to the T&C in the TEFL Online folder.

Many thanks

Elisabeth

—

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning/InnovED
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Ontario Institute for Studies in Education
University of Toronto
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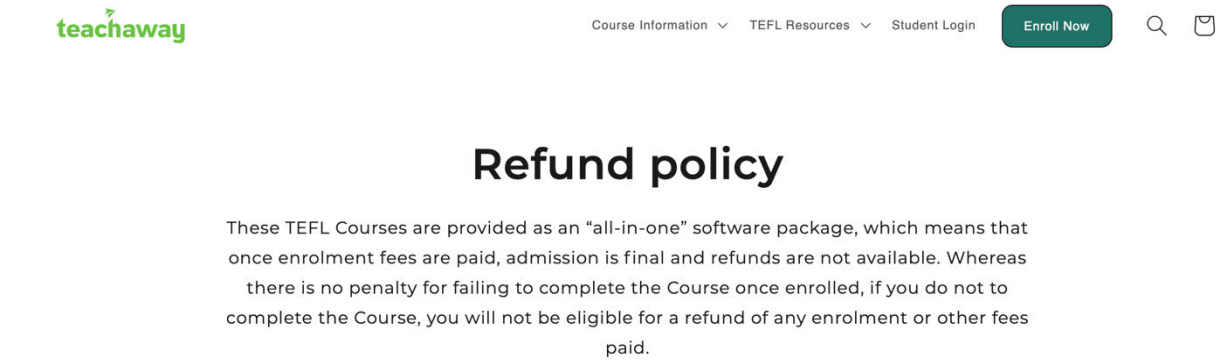


Attachment 1

MAY 7 2025

OISE Continuing & Professional Learning

TeachAway Refund Policy from https://teflonline.teachaway.com/pages/refund-policy



Terms of Service Download from https://secure.teachaway.com/en-ca/policies/terms-of-service#pdterms

Terms of service

Teach Away Professional Development

1. Terms

By accessing the Teach Away professional development courses you agree to be bound by these Terms and Conditions of the Kesson Group Inc. (o/a Teach Away) (hereafter known as "Teach Away", "We" "Us", or "Our"), all applicable laws and regulations, and agree that you are responsible for compliance with any applicable local laws. If you do not agree with any of these terms, you are prohibited from using or accessing your Teacher Certification Program, TEFL course, or other Professional Development course (including Culturally Responsive Teaching, Digital Learning in the K-8 Classroom, Disciplinary Literacy) and the course materials (hereafter known as the "Course"). Although you have been directed to the Course enrollment website of one of our industry partners ("Provider"), the Course that will become available to you upon enrollment has been developed and is being provided to you by Teach Away. Teach Away contracts with industry partners, including Provider, to make available online, self-directed learning programs like the Course to consumers, customers and employees of such industry partners. The materials contained in this Course and on are protected by applicable copyright and intellectual property laws of Teach Away and/or Provider.

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warranties, including, without limitation, implied warranties or conditions of merchantability, fitness for a particular purpose, or non-infringement of intellectual property or other violation of third party rights. You agree to address any questions or concerns respecting the Course directly with Provider. This includes, without limitation, any concerns you may have about the content, likely results, fitness, quality, accuracy or reliability of the Course or the Course materials. Provider provides to Us and/or approves all content incorporated into the Course and the Course materials and We do not warrant or make any representations concerning the content, likely results, fitness, quality, accuracy or reliability of the Course and/or the use of the Course materials or otherwise relating to such materials or on any sites linked within the Course or the Course materials. You agree that your enrollment in and use of the Course is at your sole risk. Because some jurisdictions do not allow limitations on implied warranties, or limitations of liability for consequential or incidental damages, these limitations may not apply to you.
We cannot guarantee continuous availability of the Course, availability at a particular time, integrity of data, information or content stored or transmitted via the Internet. We will not be liable for any unauthorized access to, or any corruption, erasure, theft, destruction, alteration or inadvertent disclosure of data, information or content transmitted, received or stored pursuant to your enrolment in and/or use of the Course.

In no event shall We or our subsidiaries or affiliates (and each of their respective employees, agents, directors, officers subcontractors, representatives or suppliers) be liable for any damages (including, without limitation, direct, indirect, incidental, special, liquidated, punitive or consequential damages, including damages for loss of data or profit, or due to business interruption) arising from the use or inability to use the Course or the Course materials even if We, or an authorized representative of Us, have been notified of the possibility of such damage. You further agree that We and our subsidiaries or affiliates (and each of their respective employees, agents, directors, officers subcontractors, representatives or suppliers) shall not be liable to you for any damages of any kind arising from Provider's use or misuse of your personal information. You agree that for any liability related to the Course for which We might, by a court having jurisdiction, be found to be liable for, We shall not be liable or responsible for any amount of damages above the aggregate dollar amount paid by you in respect of your enrollment in the Course or $500.00, whichever is less.

5. Revisions and Errata

The Course materials could include technical, typographical, or photographic errors. We do not warrant that any of the Course materials are accurate, complete or current. We may make changes to the materials contained on its Course at any time without notice. We do not, however, make any commitment to update the Course materials unless and until requested or required by Provider.

6. Links

We have not reviewed all of the websites to which there may be links in the Course materials and We are not responsible for the contents of any such linked website. The inclusion of any link within the Course or the Course materials does not imply endorsement of such website by Us or Provider. Use of any such linked website is at your own discretion and risk.

7. Refund Policy

TEFL, Teacher Certification Program and other Professional Development Courses**:** These Courses are provided as an "all-in-one" software package, which means that once enrolment fees are paid, admission is final and refunds are not available. Whereas there is no penalty for failing to complete the Course once enrolled, if you do not to complete the Course, you will not be eligible for a refund of any enrolment or other fees paid.

8. Course Expiry

TEFL, Teacher Certification Program and Professional Development Courses**:** In order to receive Provider's certificate of completion you are required to successfully complete all aspects of the Course (including the final assessment) within the respective Course deadline (hereafter "Duration of Access") of receiving your course login details from Us. If you fail to complete the course within the given Duration of Access, you will not be awarded a certificate of completion and, in accordance with paragraph 7, will not be eligible for a refund.The Course deadlines are as follows:

i. TEFL, Digital Learning in the K-8 Classroom, Digital Literacy: 365 days from the date of enrollment

ii. Culturally Responsive Teaching and all other professional development courses: 90 days from the date of enrollment

9. Terms of Use Modifications

We may revise these terms and conditions of use at any time without notice. By using this website, you are agreeing to be bound by any updated version of these Terms and Conditions.

10. Indemnity

You agree to indemnify, defend and hold harmless Us and our subsidiaries and affiliates and each of their respective officers, directors, employees, shareholders, representatives and agents (each an "indemnified party" and, collectively, "indemnified parties") from and against any and all claims, damages, losses, liabilities, suits, actions, demands, proceedings (whether legal or administrative), and expenses (including, but not limited to, reasonable legal fees) threatened, asserted, or filed by a third party against any of the indemnified parties arising out of or relating to your use of the Course, (ii) any violation by you of these Terms and Conditions.

11. Governing Law

These Terms and Conditions shall be governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein without regard to its conflict of law provisions. You hereby irrevocably attorn to the non-exclusive jurisdiction of the courts of such province. These Terms & Conditions and the transactions contemplated herein are not and never will be subject to the United Nations Convention on the Uniform Sale of goods or the Uniform Computer Information Transactions Act (prepared by the National Conference of Commissioner on Uniform State Laws) as currently enacted by any jurisdiction or as may be codified or amended from time to time by any jurisdiction.

12. Severability

These Terms & Conditions state the entire agreement between you and Us. If any term or condition herein shall be held to be invalid, illegal, unenforceable or in conflict with the law of any jurisdiction, the validity, legality and enforceability of the remaining terms shall not in any way be affected or impaired thereby. You agree with Us that it is our mutual intent that these Terms & Conditions, including without limitation any

limitation of liability herein, be enforced as written, but otherwise to the maximum extent allowable by law.

JOB POSTING SERVICES

TERMS & CONDITIONS OF USE (rev. 11/2016)

The following Terms and Conditions of Use are applicable to your use of the job posting services (the "Services";) offered by Teach Away Inc. ("Teach Away";) and form a contract between you and Teach Away. These Terms and Conditions of Use apply to all employers, organizations, institutions, companies or other entities, contractors, job seekers, employees and any other people who visit this website and/or make use of the Services ("Users"). By accessing or using the Services, you agree that you have read, understood and agree to be bound by these Terms and Conditions of Use, which also incorporate Teach Away's Privacy Policy by this reference.

These Terms and Conditions of Use will remain in full force and effect whenever and for so long as you use the Services; provided, however, that Teach Away reserves the right to amend these Terms and Conditions of Use from time to time and may do so by posting an updated version to this web page. You should visit this page periodically to review the most current Terms and Conditions of Use because they are binding on you. Your continued use of the Services will constitute your acceptance of these Terms and Conditions of Use and any such changes. If you do not agree to any of these Terms and Conditions of Use, including as may be amended from time to time, you should not use or otherwise access the Services. Except as otherwise expressly agreed by Teach Away in writing, these Terms and Conditions are the only terms governing the provision the Services by Teach Away.

1. Services

1.1 You may only use the Services if you are at least eighteen (18) years of age and can form a binding contract with Teach Away. Any use or access to the Services by anyone under 18 is strictly prohibited and in violation of these Terms and Conditions of Use. The Services and its features may be used only by individuals seeking employment and/or employers seeking employees. The Services are not available to any Users previously prohibited from the Services by Teach Away, unless we provide such Users with specific written authorization to re-use the Services. If you use the Services on behalf of a company, organization,

institution or other entity, then (a) “you” includes you and that entity, and (b) you represent and warrant that you are an authorized representative of such entity with the authority to bind the entity to these Terms and Conditions of Use, and that you agree to these Terms and Conditions of Use on the entity’s behalf. You acknowledge and agree that you are not a competitor of Teach Away and that you will not use the Services for reasons that are in competition with Teach Away or otherwise to replicate some or all of the Services for any reason.

1.2 The Client expressly acknowledges that any Services provided by Teach Away to Users who are employers, organizations, institutions, companies or other entities are provided on a non-exclusive basis, and that Teach Away may provide services which are similar or identical to the Services to other parties, including, but not limited to competitors of User and/or other entities operating in the same or similar industry(ies) and/or jurisdiction(s) as a User.

1.3 By using the Services, you acknowledge and agree that Teach Away does not have control over the quality, timing, or legality of the information uploaded or requested by Users. In addition, you acknowledge and agree that Teach Away does not have control over the integrity, responsibility or actions of employees, job seekers, prospective employees or prospective employers

1.4 In order to use the Services, you must create an account with Teach Away (an “Account”). When creating an Account or uploading information through your Account, you represent and warrant that all information provided will be complete and accurate. Users are solely responsible for the activity that occurs on its Account. You are responsible for maintaining the confidentiality of your Account and password, as applicable. You may not share your password or other Account access information with any other party, temporarily or permanently, and you shall be responsible for all uses of your Account, whether or not authorized. You must notify Teach Away immediately of any breach of security or unauthorized use of your Account; provided, however, that Teach Away will not be liable for any losses caused by any unauthorized use of an Account.

2. Rules Governing Use of Services

2.1 All Users agree not to engage in any of the following activities pursuant to its use of the Services, all of which are prohibited by Teach Away:

(a) transmit, post, distribute, store or destroy material in violation of any applicable law or regulation, including but not limited to laws or regulations governing the collection, processing, or transfer of personal information, or in breach of Teach Away's Privacy Policy;

(b) take any action that imposes an unreasonable or disproportionately large load on the infrastructure of any website operated by Teach Away;

(c) use any data mining, robots or similar data gathering or extraction methods;

(d) violate or attempt to violate the security of any Teach Away website including attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization;

(e) forge any TCP/IP packet header or any part of the header information in any e-mail or newsgroup posting;

(f) reverse engineer or decompile any parts of any Teach Away website;

(g) aggregate, copy or duplicate in any manner any of the information available from any Teach Away website, including expired job postings;

(h) post any content or material that promotes or endorses false or misleading information or illegal activities, or endorses or provides instructional information about illegal activities or other activities prohibited by these Terms and Conditions of Use, such as making or buying illegal weapons, violating someone's privacy, providing or creating computer viruses or pirating media;

(i) access data not intended for User or logging into a server or account which User is not authorized to access;

(j) post or submit any incomplete, false or inaccurate information or information which does not belong to User;

(k) post content that contains restricted or password-only access pages, or hidden pages or images;

(l) delete or alter any material posted by any other person or entity;

(m) harass, incite harassment or advocate harassment of any group, company, or individual;

(n) attempt to interfere with service to any user, host or network, including, without limitation, via means of submitting a virus to any Teach Away website or through the use of the Services, overloading, “flooding”, “spamming”, “mailbombing” or “crashing”; or

(o) promote or endorse an illegal or unauthorized copy of another person’s copyrighted work.

3. Additional Terms Governing Employer Use of services

3.1 In addition to refraining from the activities set forth in Section 2, with respect to its posting of jobs using the Services, all employers agree to the following additional terms and conditions, and Teach Away reserves the right to delete or otherwise remove any job posting or User content which does not comply herewith or is otherwise not in the best interests of Teach Away:

(a) Employers are solely responsible for the job postings they list using the Services. Teach Away should not be construed, considered or deemed to be an employer in respect of your posting of available jobs using the Services and Teach Away will not be responsible for any employment decisions, for whatever reason, made by any entity posting jobs pursuant to its use of the Services.

(b) Employers agree that no job posting may contain any of the following:

(i) hyperlinks, unless specifically agreed to or authorized by Teach Away;
(ii) names, logos, trademarks or other references to other parties that are unrelated to or unaffiliated with the job posting and/or the employer, including companies, organizations, educational institutions, cities or other municipalities, states, provinces and countries; (iii) more than one job or job description, more than one location, or more than one job category, unless specifically agreed to or authorized by Teach Away;
(iv) inaccurate, false or misleading information of any kind; or
(v) material or links to material that exploit people in any manner (including sexually, violently or with respect to the provision of labour) or solicits information from individuals under the age of 18;
(c) Employers also agree that the Services shall not be used:

(i) to post jobs in a manner that does not comply with applicable local, national and international laws, including but not limited to laws

relating to labor and employment, equal employment opportunity and employment eligibility requirements, data privacy, data access and use, and intellectual property;
(ii) to post jobs that require citizenship of any particular country or lawful permanent residence in a country as a condition of employment, unless otherwise required in order to comply with applicable law, regulations, executive order, or federal, provincial, state or local government contracts;
(iii) to post jobs that include any screening requirement or criterion in connection with a job posting where such requirement or criterion is not an actual and legal requirement of the posted job;
(iv) to post jobs or other advertisements for competitors of Teach Away or post jobs or other content that contains links to any site competitive with Teach Away;
(v) to sell, promote or advertise products or services;
(vi) to endorse or promote a particular religion, political party, political agenda, political position or issue; or
(vii) for any unlawful purpose or any illegal activity, or post or submit any content or job posting that is defamatory, libelous, implicitly or explicitly offensive, vulgar, obscene, threatening, abusive, hateful, racist, discriminatory, of a menacing character or likely to cause annoyance, inconvenience, embarrassment, anxiety or could cause harassment to any person or include any links to pornographic, indecent or sexually explicit material of any kind, as determined in the discretion of Teach Away.
(d) Employers further agree, in respect of the hiring of individuals in respect of any job posting made pursuant to its use of the Services, to:

(i) provide a safe working environment for all hired employees in accordance with the laws of the User's jurisdiction;
(ii) ensure that hired employees have the resources necessary to carry out the duties required of their employment, including but not limited to the provision of adequate support (including, but not limited to, assistance with establishing bank accounts) and the provision of such other services and support that may reasonably be required by employees in the fulfillment of their obligations to the User;
(iii) if housing is provided for pursuant to any contract entered into between User and an employee, User shall provide or arrange safe and adequate accommodations and the necessary amenities to the employee;
(iv) provide all hired employees, at the User's expense, with legal work permits or visas, as required;
(v) register all hired employees with the local immigration office, trade

bureau or employment office, as may be applicable and/or required by local or applicable law, in a timely manner and at the User's expense;
(vi) comply with all applicable and local laws, including employment standards and labour relations laws (including, where applicable, contributions to public pension funds, health care contributions, paid vacation days, paid sick days and income and other applicable taxes), human rights, tax and health and safety legislation;
(vii) provide or make available or cause to be provided or made available to Teach Away all information, documents, materials and other information, which are reasonably required by Teach Away in order to assess the User, the positions posted using the Services and to otherwise provide the Services, including, but not limited to: lists and descriptions of positions, details regarding working conditions, copies of any contract that prospective employees will be required to enter with User and a job description and full contact information for the individual(s) acting on behalf of User in interviewing and hiring prospective employees; and
(viii) promptly notify Teach Away in writing of any material changes, actual, contemplated or threatened, in the positions posted, the requirements of employees and with respect to the working conditions, and any other matter which may reasonably affect a prospective employee, whether or not yet hired by User.

4. User Content

4.1 By making any content (including job postings) available through your use of the Services, you hereby grant the following license to Teach Away, which Teach Away may exercise solely in connection with its provision of the Services, directly or directly: a worldwide, irrevocable, perpetual, non-exclusive, transferable, royalty-free license, with the right to sublicense, use, view, copy, adapt, modify, distribute, license, sell, transfer, publicly display, publicly perform, transmit, stream, broadcast and otherwise exploit such content. Teach Away does not claim any ownership rights in any User's content and nothing in these Terms and Conditions of Use will be deemed to restrict any rights that you may have to use and exploit any of your own content.

4.2 You acknowledge and agree that you are solely responsible for all content that you make available pursuant to your use of the Services. Accordingly, you represent and warrant that: (i) you are either the sole and exclusive owner of all content that you make available pursuant to your use of the services or you have all rights, licenses, consents and releases that are necessary to grant to Teach Away and to the rights in

such content, as contemplated under these Terms and Conditions of Use; and (ii) neither your content nor your posting, uploading, publication, submission or transmittal of such content, through or by means of the Services or otherwise will infringe, misappropriate or violate a third party's patent, copyright, trademark, trade secret, moral rights or other intellectual property rights, or rights of publicity or privacy, or result in the violation of any applicable law or regulation and you agree to indemnify and hold Teach Away harmless for any such claims of third parties.

5.Paid Services

5.1 The Services may be provided to you for a fee or other charge as may be set forth in any sales order in respect of such aspects between you and Teach Away. Where you commit to use such paid features of the Services, you agree to the pricing and payment terms for the applicable Service, as we may update them from time to time.

6. Links

6.1 You acknowledge and agree that the Teach Away website used to provide the Services may contain links to third-party websites or resources. You acknowledge and agree that Teach Away is not responsible or liable for: (i) the availability or accuracy of such websites or resources to Users or otherwise; or (ii) the content, products, or services on or available from such websites or resources. Links to such websites or resources do not imply any endorsement by Teach Away of such websites or resources or the content, products, or services available from such websites or resources.

7. Personal Information

7.1 Users acknowledge and agree that Teach Away may receive personal information relating to individual job candidates ("Personal Information") pursuant to its offering of the Services and that Teach Away has a duty to maintain the confidentiality of such information and to use it only for specific and limited purposes, including pursuant to the *Personal Information Protection and Electronic Documents Act* (Ontario), the Teach Away Privacy Policy and, where applicable, the EU General Data Protection Regulation (GDPR). Accordingly, employer Users agree to hold all Personal Information that it may receive from individual job candidates secure and will comply with all applicable laws and regulations relating to the protection and privacy of the Personal

Information and Users will not use or disclose any Personal Information to any third party whatsoever other than to carry out the Users obligations or as otherwise permitted by applicable law.

8. Relationship of the Parties

8.1 Teach Away performs the Services as an independent contractor and nothing shall constitute or be deemed to create a partnership, joint venture or principal and agent relationship between Teach Away and a User and neither Users nor Teach Away will have any authority to bind the other. These Terms and Conditions of Use will not impose upon either party any obligations for any losses, debts or other obligations incurred by the other party except as may be expressly set forth herein.

9. Disclaimers, Limitation of Liability and Indemnity

9.1 You acknowledge and agree that Teach Away does not screen or censor job postings posted by employers pursuant to their use of the Services and that, unless otherwise agreed to between a User and Teach Away by a separate Agreement for recruitment services, Teach Away is not involved in, and does not control any interaction between employers and individual job candidates. Teach Away is not responsible for any content posted by Users, the quality, safety or legality of the jobs posted, the truth or accuracy of job postings, the ability of employers to offer job opportunities to individual candidates or the ability of individual candidates to fill job openings and Teach Away makes no representations or warranties in respect of any job or content posted by any User pursuant to its use of the Services. Teach Away reserves the right in its sole discretion to remove content posted by Users, including job postings, from time to time, however, Teach Away does not assume any obligation to do so and to the extent permitted by applicable law, Teach Away disclaims any liability for failing to take any such action.

9.2 To the fullest extent permitted by applicable law, Teach Away does not warrant that any Teach Away site or the Services will operate error-free or that any Teach Away site or servers are free of computer viruses or other harmful mechanisms. If your use of any Teach Away site or the Services results in the need for servicing or replacing equipment or data or any other costs, Teach Away is not responsible for those costs. All Teach Away sites and, more specifically, the Services, are provided on an “as is” basis without any warranties of any kind. Teach Away, to the fullest extent permitted by applicable law, disclaims all warranties, express or implied, including the warranties of merchantability, fitness

for particular purpose and non-infringement. Teach Away makes no warranties about the accuracy, reliability, completeness, or timeliness of its sites, the Services, or the content thereof, including software, text, graphics, and links.

9.3 You acknowledge and agree that: (a) Teach Away does not operate or control the internet and that (i) viruses, worms, trojan horses, and other undesirable data or software, or (ii) unauthorized users (e.g., hackers) may attempt to obtain access to and damage your data, websites, computers, or networks or those of the users; (b) Teach Away will not be responsible for any of the foregoing activities; (c) you are solely responsible for the security and integrity of your data and systems; and (d) no advice or information, whether oral or written, obtained from Teach Away or through its provision of the Services will create any warranty not expressly made herein.

9.4 Teach Away cannot and does not confirm that each User is who they claim to be and because we do not and cannot be involved in User-to-User dealings or control the behavior of Users, in the event that you have a dispute with one or more Users, to the fullest extent permitted by applicable law, you release Teach Away and its affiliates and their respective directors, officers, agents and employees from all claims, demands and damages of every kind and nature, known and unknown, suspected and unsuspected, disclosed and undisclosed, arising out of or in any way connected with such disputes.

9.5 To the fullest extent permitted by applicable law, in no event shall Teach Away, its officers, directors, agents, contractors or any third parties mentioned on any Teach Away site or pursuant to the provision of the Services be liable for any damages whatsoever (including, without limitation, incidental and consequential damages, lost profits, or damages resulting from lost data, lost employment opportunity or business interruption) resulting from the use or inability to use any Teach Away site and/or the Services, whether based on warranty, contract, tort, or any other legal theory, and whether or not Teach Away is advised of the possibility of such damages.

9.6 To the fullest extent permitted by applicable law, the maximum liability of Teach Away arising out of or in connection with any Teach Away site or your use of the Services, regardless of the cause of action (whether in contract, tort, breach of warranty or otherwise), will not exceed $100.

9.7 Each User who is an employer acknowledges and agrees that Teach Away is not responsible in law or otherwise for any individual job candidate or for any of the conduct, actions or failure to act of any job candidate, and Teach Away shall in no way be responsible for any claim by a User relating to or arising from the employment, conduct, actions or failure to act of any individual, including if such circumstances relate to the mental stability, suitability, character, experience, education background, criminal background, employment history, work status, qualifications, personal circumstances or personality traits of such individual.

9.8 You agree to defend, indemnify, and hold harmless Teach Away, its affiliates, and their respective officers, directors, employees and agents, from and against any claims, actions or demands, including without limitation reasonable legal and accounting fees, alleging or resulting from: (i) any content or other material you post pursuant to your use of the Services (including job postings); (ii) your use of the Services; or (iii) your breach of these Terms and Conditions of Use.

10. Dispute Resolution

10.1 If any dispute arises between the parties relating to the construction or application of the Agreement or the rights, duties or obligations of either party to the Agreement (a “Dispute”), the Parties shall act in good faith an effort to resolve the Dispute. To this end, they shall consult and negotiate with each other, in good faith and understanding of their mutual interests, to reach a just and equitable solution satisfactory to the parties

10.2 Whether or not consultation or negotiation contemplated by Section 10.1 has taken place, prior to the initiation of arbitration in respect of a Dispute pursuant to Section 10.3, the initiating party shall give written notice to the other party that it wishes to have a Dispute resolved. Such initial notice must generally describe the nature of the Dispute in sufficient detail to identify the issues and conflicting positions. Within fifteen (15) business days of giving such initial notice, a senior level employee designated by Teach Away with authority to settle the Dispute shall meet (which meeting may be held by teleconference or other electronic means) with a senior level employee designated by the Client with authority to settle the Dispute, and such persons shall act in good faith and endeavour to reach a mutually satisfactory resolution to the Dispute, and, if resolved, the such resolution shall be

put in writing and shall be binding on the parties upon the execution of such written resolution.

10.3 If a Dispute is not resolved by the procedures in forth in Sections 10.1 and 10.2, then either party may initiate private arbitration proceedings. Such arbitration will be conducted by a single arbitrator who will be appointed by agreement between the parties or, if the parties cannot agree on an arbitrator within thirty (30) days, such arbitrator will be appointed by a judge of the Superior Court of Justice of Ontario, upon the application of either party to such court and such judge may act as such arbitrator, if he or she so desires. Unless otherwise agreed to by the parties, the arbitration shall be held in the City of Toronto, Ontario, Canada. The procedure to be followed shall be agreed to by the parties or, if no such agreement is reached, determined by the arbitrator. Any arbitration must proceed in accordance with the provisions of the Arbitration Act, 1991 (Ontario). The decision arrived at by the arbitrator will be final and binding on the parties and no appeal shall lie therefrom. Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction.

11. Notice

11.1 Any notice or other document required or permitted to be given hereunder to any of the Parties must be in writing mailed by registered mail, courier or transmitted by fax or by email to the parties at their respective addresses first set forth in the Agreement, or at such other address as the party to whom such notice is to be given may have designated. Any notice which is mailed will be deemed to have been given on the fifth (5th) business day following the date of the mailing, or if delivered or transmitted by courier, fax or email, on the date of actual delivery or transmission (or if such a day is not a business day, on the next business day).

12. Assignment

12.1 You may not assign or transfer these Terms and Conditions of Use, by operation of law or otherwise, without the prior written consent of Teach Away, which consent may be delayed or withheld by Teach Away in its sole discretion. Any attempt by you to assign or transfer these Terms and Conditions of Use, without such consent, will be null and of no effect. Teach Away may assign or transfer these Terms and Conditions of Use, in its sole discretion, without restriction.

13. Termination

13.1 Teach Away reserves the right, at its sole discretion, to pursue all of its legal remedies, including but not limited to removal of your content from any Teach Away website and immediate termination of your Account or your ability to access the Services, upon any breach by you of these Terms and Conditions of Use or if Teach Away is unable to verify or authenticate any information you submit to Teach Away or who engage in the unauthorized posting, reproduction, copying, distribution, modification, public display or public performance of copyrighted works of third parties or who otherwise infringe upon the intellectual property rights of any third parties.

14. Termination

14.1 Continuing Obligations. Notwithstanding the termination of a User's Account for its violation of these Terms and Conditions or Use or otherwise, such action shall not relieve the parties of any obligations that, by their nature, survive such termination, including any claims pertaining to warranties, indemnities, and obligations with respect to confidential information or Personal Information

14.2 Controlling Law and Jurisdiction. These Terms and Conditions of Use and any action related thereto will be governed by the laws of the Province of Ontario and the laws of Canada applicable therein, without regard to conflicts of law provisions. The exclusive jurisdiction and venue of any action, including those to prevent the actual or threatened infringement, misappropriation or violation of a party's copyrights, trademarks, trade secrets, patents or other intellectual property rights will be the provincial courts of Ontario located in the city of Toronto, Ontario, and each of the parties hereto waives any objection to jurisdiction and venue in such courts.

14.3 Copyright and Trademarks. All trademarks, service marks, logos, trade names and any other proprietary designations of Teach Away used in respect of its websites or the provision of the Services are trademarks or registered trademarks of Teach Away and may not be used or reproduced by any User without the express written consent of Teach Away. Any other trademarks, service marks, logos, trade names and any other proprietary designations used in respect of its websites or the provision of the Services are the trademarks or registered trademarks of their respective parties.

14.4 Other. The failure of Teach Away to enforce any right or provision of these Terms and Conditions of Use will not constitute a waiver of future enforcement of that right or provision. The waiver of any such right or provision will be effective only if in writing and signed by a duly authorized representative of Teach Away. Except as expressly set forth in these Terms and Conditions of Use, the exercise by either party of any of its remedies under these Terms and Conditions of Use will be without prejudice to its other remedies under these Terms and Conditions of Use or otherwise. If for any reason a court of competent jurisdiction finds any provision of these Terms and Conditions of Use invalid or unenforceable, that provision will be enforced to the maximum extent permissible and the other provisions of these Terms and Conditions of Use will remain in full force and effect. These Terms and Conditions of Use shall be binding on the parties hereto, their respective legal representatives, successors and permitted assigns.

Attachment 2

TEFL Online Certificate Program – Learner FAQs

Why is the TEFL Online Certificate Program no longer accepting enrolments?

The TEFL Online Certificate Program was previously delivered through a partnership between OISE Continuing & Professional Learning and Teach Away. That agreement has now concluded, and the program is being transitioned to a new program administration model delivered directly by OISE CPL. A newly redeveloped TEFL Online program will launch in Fall 2025.

What if I enrolled but didn't complete the program?

The University of Toronto, as represented by OISE Continuing & Professional Learning, is not continuing the previously delivered TEFL Online Certificate program, and we are not able to provide program access, re-enrolment or program completion under the former delivery model that was managed by Teach Away.

However, if you have questions about your learner record, registration history or future learning options, we invite you to contact our team at: oise.cpl@utoronto.ca.

For payment or refund-related concerns, please contact Teach Away via Pluribus Technologies at: info@pluribustechnologies.com

Can I get a refund for the course?

All enrolment and payment processing was managed by Teach Away (Kesson Group Inc. / Pluribus Technologies), not the University of Toronto. According to Teach Away's published Terms & Conditions that you acknowledged and accepted at the time of your registration and payment, no refunds are issued after enrolment, regardless of whether the course was completed or paused.

If you believe your circumstances are exceptional or you were impacted during the providers' creditor protection process, please direct your inquiry to the former program provider: info@pluribustechnologies.com

Why can't the University of Toronto give me a refund?

The University of Toronto, as represented by OISE CPL, did not receive any payment for this course and was not involved in the financial transaction. Your payment for the course was made to Teach Away. As a result, OISE CPL is not authorized to process or issue refunds.

Can I still get my certificate?

If you successfully completed the program and are waiting for your certificate, please contact: oise.cpl@utoronto.ca.

Only where OISE CPL is able to verify your program completion will a program certificate of completion be issued.

What happens to my learner record?

OISE CPL has securely received all learner records related to the TEFL Online program and will retain these records in accordance with University of Toronto data governance and privacy policies

What if I didn't finish but want to complete in the future?

We are currently developing a renewed and enhanced TEFL Online Certificate Program which will launch in Fall 2025. This program will be fully administered by OISE CPL and will include refreshed content and improved learner support.

You can join our waitlist to be notified when registration opens:
[Insert waitlist link]

I finished my course in March/April, but I still haven't received my physical certificate.

We're currently experiencing a slight delay in printing and mailing out physical certificates. We appreciate your patience as we work to complete this process.

In the meantime, if you haven't already received one, we'd be happy to provide you with an electronic certificate for your records.

Where can I ask more questions?

For questions related to your learner record, your certificate, or future TEFL programming, please contact us at oise.cpl@utoronto.ca

For refund-related concerns, contact: info@pluribustechnologies.com

Website Landing Page

TEFL Online Certificate Program – A New Chapter Begins

For over a decade, OISE Continuing and Professional Learning partnered with Teach Away, who served as the program's online platform administrator. This innovative partnership enabled the TEFL Online Certificate Program to reach learners globally at a time when OISE CPL did not yet have the in-house platforms to support large-scale program implementation.

As technologies evolve and pedagogical standards shift, so too must our delivery models. With that in mind, we are pleased to share that this successful partnership has run its course and we are now concluding our relationship with Teach Away.

TEFL Online Program Update – What You Need to Know

- The current TEFL Online Certificate Program, formerly administered in partnership with Teach Away, is no longer accepting new enrolment
- If you enrolled in the last year, on or after **April 15 2024** , and have not been able to complete the program please contact oise.cpl@utoronto.ca.

Coming Fall 2025: A New TEFL Online Experience

We're excited to announce a renewed and enhanced TEFL Online Certificate Program launching Fall 2025 – designed and administered directly by OISE Continuing & Professional Learning.

Join our [waitlist] to receive early updates and priority access when registration opens.

CPL Administration Wind Down Check List

CPL Deadline: EoD May 12 2025

Learner Records & Support

- ☐ Confirm download and secure storage of: (Maggie, Sravan, Hanadi)
  - Learner data (7-year record export)
  - Course/module completion files
  - Financial transactions related to learner payments
- ☐ Confirm Hanadi to serve as interim internal point of contact for: (Hanadi, Michael)
  - Academic records and certification inquiries
  - General learner questions
- ☐ Prepare and provide incoming call script for VAS (Hanadi, Trish)
- ☐ Post/update TEFL landing page with: (Hanadi, Allie, Michael)
  - Statement of program transition
  - Contact information for learner support and refunds
  - Waitlist link for new TEFL program launch

Course & Platform Asset Retrieval

- ☐ Download and archive: (Sam, Sravan)
  - SCORM packages
  - Instructor/facilitator guides
- ☐ Confirm Articulate transfer: (Sam)
  - Share Sam's contact email as OISE staff member with Articulate account (Elisabeth/Michael)
- ☐ Confirm closure of: (Hanadi, Allie, Michael)
  - Shopify storefronts
  - Third-party listings referencing OISE/TEFL

Finance & Reconciliation

- ☐ Download and archive financial reconciliation files (Maggie, Sravan)
- ☐ Review royalty report (March 1–April 15, 2025) (Maggie, Michael)
- ☐ Issue invoice to Pluribus by **May 15, 2025** (Maggie, Hanadi, Michael)
- ☐ Save and reconcile: (Maggie, Hanadi)
  - Payment history
  - Outstanding and stayed amounts
  - Confirmation of final payment

  Invoice Printphics for March and April certificate printing.

- ☐ Confirm with Pluribus: (Michael, Hanadi)
  - Refunds processed for learners post-April 15 (confirmed with Maggie)
  - List of learners paid but did not complete
  - Refund communications sent to learners (confirmed with Maggie)

Final Documentation

- ☐ Receive and archive signed acknowledgement of agreement termination (Michael, Hanadi)
- ☐ Confirm closure of all program-related systems by May 15, 2025 EoD (Michael, Hanadi)

From: Allison Houghton <allie.houghton@utoronto.ca>
Subject: Re: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies
To: "Hanadi Abdullah" <hanadi.abdullah@utoronto.ca> "Elisabeth Rees-Johnstone" <e.rees.johnstone@utoronto.ca>
CC:"Maggie Xu" <m.xu@utoronto.ca> "Joe Romano" <joe.romano@utoronto.ca> "Samantha Presutto Quercia" <samantha.presutto@utoronto.ca> "Trisha Mazzotta" <trish.mazzotta@utoronto.ca> "Michael Cassidy" <michael.cassidy@utoronto.ca>
Sent: Mon, 09 Jun 2025 16:36:49 -0400 (Mon, 09 Jun 2025 20:36:49 GMT)
Attachment 1: TEFL Transition FAQs.pdf

Here it is Hanadi. Let me know if this will work or if you need anything else.
A

Allie Houghton
Manager, Marketing & Community Engagement
OISE Continuing & Professional Learning,
Research, Partnership & Innovation,
University of Toronto
t: (416) 407 7476
e: allie.houghton@utoronto.ca
w: www.oise.utoronto.ca/cpl

From: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Date: Monday, June 9, 2025 at 3:21 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Allison Houghton <allie.houghton@utoronto.ca>
Cc: Maggie Xu <m.xu@utoronto.ca>, Joe Romano <joe.romano@utoronto.ca>, Samantha Presutto Quercia <samantha.presutto@utoronto.ca>, Trisha Mazzotta <trish.mazzotta@utoronto.ca>, Michael Cassidy <michael.cassidy@utoronto.ca>
Subject: Re: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies

Thank you for this comprehensive response, Elisabeth. I'm happy to respond to the learner, as suggested.

@Allison, would it be possible to support with branding the attached FAQs document please?

Thank you,
Hanadi

—

HANADI ABDULLAH

Senior Program Manager

OISE Continuing & Professional Learning

University of Toronto

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

From: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>
Sent: Monday, June 9, 2025 3:02 PM
To: Michael Cassidy <michael.cassidy@utoronto.ca>; Trisha Mazzotta <trish.mazzotta@utoronto.ca>; Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Cc: Maggie Xu <m.xu@utoronto.ca>; Joe Romano <joe.romano@utoronto.ca>; Samantha Presutto Quercia <samantha.presutto@utoronto.ca>; Allison Houghton <allie.houghton@utoronto.ca>
Subject: RE: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies

Hi there – taking this message out of the CPL inbox loop for a moment.

It is important that we repeat our communications and reassert our good-faith actions (waitlist program, independent study, recognition of learning with proof of completion), gently push back on any suggestion that we engaged in misrepresentation so as to preserve our legal and reputational position.

If the emails are continuing and harassing, then we escalate and I am thinking back to FIPPA s. 21 behaved in this manner and our escalation to campus police. @Trisha Mazzotta – did we update SoP on this? It seems that this is an opportunity to implement given the direction this person is taking as he may be libel with his public defamatory commentary and repetitive, continuing emails.

Here is a sample response back and I would redirect to our FAQs – actually attach the FAQs as a PDF as this may be legally required. The attached needs 'branding' as I just cut and pasted it from our website. But these FAQs were reviewed by our legal team and should be shared again, and again, and again. We can't share them enough.

1. **Response to learner (sample)**
   Thank you for your message. We understand how difficult and frustrating this transition has been and are committed to supporting you as best we can.

   Please find attached a detailed FAQ document that outlines your available options, including next steps for continuing or completing the TEFL program. This FAQ also provides information on certificate issuance and who to contact for refund inquiries.

   *If you have completed part of the program or believe you are eligible for an alternative completion pathway, please provide **oise.cpl@utoronto.ca** with any documentation of your course progress.*

   We truly appreciate your patience as we finalize learner support options.

2. **PDF downloadable available via website and attached to all responding emails**
3. **Campus Safety engagement**
   a. If a learner threatens physical presence, disruption, or staff harassment, and continues publishing harmful reputational information on social media, we can **forward the email and examples from social media to Campus Police** e.g., U of T Campus Safety Services).
   b. In this case, we would then respond with something like: *OISE CPL is actively working to support all impacted learners with alternate completion options and credentialing pathways. We've published a detailed FAQ and are contacting affected learners directly. If you are impacted, please contact us at **oise.cpl@utoronto.ca**. We are committed to providing solutions—not deflecting blame—and will*

continue to act in good faith on behalf of learners. Your concerns have been noted. Given the nature of your message, this correspondence has been forwarded to Campus Safety. We ask that all further communication be respectful and directed to the appropriate contact listed in the attached FAQ.

ELISABETH REES-JOHNSTONE, EdD
Executive Director

Continuing & Professional Learning / InnovED
Research, Partnerships & Innovation
OISE, University of Toronto

e.rees.johnstone@utoronto.ca

From: OISE CPL <oise.cpl@utoronto.ca>
Date: Monday, June 9, 2025 at 12:53 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>, Michael Cassidy <michael.cassidy@utoronto.ca>, Trisha Mazzotta <trish.mazzotta@utoronto.ca>
Cc: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: Re: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies

I'm including my email address here so I can track your replies.

DEFY GRAVITY

OISE Continuing & Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

Office: 416-978-2474
Email: oise.cpl@utoronto.ca

cpl.oise.utoronto.ca

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Continuing & Professional Learning

InnovED

From: OISE CPL <oise.cpl@utoronto.ca>
Sent: Monday, June 9, 2025 12:50 PM
To: Elisabeth Rees-Johnstone <e.rees.johnstone@utoronto.ca>; Michael Cassidy <michael.cassidy@utoronto.ca>; Trisha Mazzotta <trish.mazzotta@utoronto.ca>
Subject: Fw: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies

Dear all,

I am escalating the below learner's FIPPA s.21 complaint. He's been emailing non-stop over the weekend with the same email over and over, and forwarding Teach Away's replies to us.

In the first email he had sent, he was asking for clarity after he received an email from Teach Away saying that they are undergoing a "court-supervised restricting process" and that the program no longer operates under them (which he quoted again in his last email below), and he demanded a refund.

In addition to my reply below, he had previously been provided with our announcement on TEFL and the policy on refunds was included.

Any advice on how we should proceed with this learner? Taleb also flagged that FIPPA s.21

Hanadi

DEFY GRAVITY

OISE Continuing & Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

Office: 416-978-2474
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cpl.oise.utoronto.ca

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From: FIPPA s.21

Sent: Monday, June 9, 2025 12:29 PM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: Re: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies

Dear University of Toronto - OISE,

The problem is that both your organization and Teach Away are deflecting the blame on one another. Here's what they said in an email today:

"Earlier this year, Teach Away's former parent company underwent a court-supervised restructuring process. As part of that process, the Ontario Institute for Studies in Education (OISE) made the decision to take full ownership and management of the OISE TEFL program. As a result, the course is now solely operated by OISE Continuing and Professional Learning at the University of Toronto. **Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress. OISE has not provided us with any further information, and we do not have the ability to intervene in their internal processes.**"

I paid to finish this course by August 2025, as I'm starting full-time studies in the fall. Your "solution", offered only after repeated attempts at contact and zero proactive emailing, will not suit.

If I do not receive a refund in full, I will make good on my outreach to local and national news media, the Consumer Protection Bureaus of Ontario and British Columbia, and I will not stop until I receive a satisfactory solution, which is a refund in full.

In addition, I have contacted my Minister in Parliament and posted to my network of Canadian and international language professionals on LinkedIn. **This is not going away.**

Please do the right thing,

FIPPA

On Mon, Jun 9, 2025 at 9:20 AM OISE CPL <oise.cpl@utoronto.ca> wrote:

> Dear FIPP
>
> Thank you for following up on your earlier email and for providing further context on your situation. We completely understand your frustration and apologize for the incredibly difficult position you were put in as a TEFL learner.
>
> I am reaching out to shed a little bit of clarity on the unexpected TEFL situation that has caught learners like you off guard. As you may already have heard from our announcement and/or from Teach Away, Teach Away has undergone a court-supervised restructuring process that has resulted in the conclusion of OISE's agreement with Teach Away. This was sudden and unexpected and has left learners who were in the middle of completing their TEFL program in a tough position.
>
> We want to assure you we completely understand this is unacceptable, and we want to do right by our learners. While we unfortunately are unable to process refunds as the payments were made to Teach Away, we want to support the impacted learners in finishing their programs and getting their certificates.
>
> Therefore, we have hired program developers to finalize learning pathways for impacted learners to get their certificates or complete their programs as soon as possible. Once these pathways are finalized, we will reach out individually to each and every impacted learner to ensure they are able to pursue and complete the TEFL program with us.
>
> We are committed to supporting you, and all impacted learners, in finishing your program, and I apologize if our earlier emails did not communicate this clearly, and for any delay in getting back to you and offering the support

that you need.

I hope this addresses your concerns and provides reassurance in a way forward. Please let me know if there is anything else we're able to address or support with. We'll be in touch with further details as soon as possible.

Thank you very much for your understanding.

DEFY GRAVITY

OISE Continuing & Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

Office: 416-978-2474
Email: oise.cpl@utoronto.ca

cpl.oise.utoronto.ca

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Continuing & Professional Learning

InnovED

From: FIPPA s.21
Sent: Saturday, June 7, 2025 1:31 PM
To: Minister.MCU@ontario.ca <Minister.MCU@ontario.ca>; Caitlin.Clark@ontario.ca <Caitlin.Clark@ontario.ca>; Dylan.Huynh@ontario.ca <Dylan.Huynh@ontario.ca>; bianca.giacoboni@ontario.ca <bianca.giacoboni@ontario.ca>
Cc: OISE CPL <oise.cpl@utoronto.ca>; info@pluribustechnologies.com <info@pluribustechnologies.com>; Sepehr Nasri from Teach Away <teflonline@teachaway.com>
Subject: Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies

Dear Ontario Minister of Colleges and Universities, the Honourable Nolan Quinn,

I'm writing to you today to warn you of the dubious subcontracting practices of the University of Toronto (OISE), particularly with two companies operating in the Province of Ontario: Teach Away and Pluribus Technologies.

Mid August of last year, I signed up with the University of Toronto to complete an online TEFL certification with them, in partnership with Teach Away. I was given a year to complete the online certificate. They were the more expensive option, but I went with them, since they were Canadian and supposedly a reputable institution.

Without any warning this spring, both parties cancelled the program - and I've been left in the lurch.

When contacted via email, the University of Toronto claims it is not responsible - that the legalese protects them from any non-completion of the course - and Teach Away / Pluribus Technologies have not replied to any of my emails. It's been really frustrating, and not something I'd expect from a "world class" university like UofT, or an international organization like Teach Away.

I'll have paid about $1,255.80 for this course, these companies have not delivered what they promised when they promised, and I'm probably not alone.

I think it would behoove the Minister and the Public to know about the University of Toronto's scandalous behaviour, and not to sign up with Teach Away or Pluribus Technologies, so that they too don't end up wasting thousands of dollars and many hours of their time.

Thank you for your time,

FIPPA

TEFL Online Program Transition: Questions & Answers

Why is the TEFL Online Program no longer accepting enrolments?

The TEFL Online Certificate Program was previously delivered through a partnership between OISE Continuing & Professional Learning (CPL) and Teach Away. That agreement has now concluded. The program is being transitioned to a new administration model, fully delivered by OISE CPL. A newly redeveloped TEFL Online Certificate Program will launch in Fall 2025.

What if I enrolled but did not complete the program?

OISE CPL is not continuing the TEFL Online Certificate Program previously delivered by Teach Away. We're unable to offer access or re-enrolment under the former delivery model. However, we are pleased to offer a few pathways to support your continued progress:

Option 1 – Join the new program in Fall 2025.
If you completed fewer than five units in the previous program, we encourage you to register for the newly redeveloped TEFL Online Certificate Program launching in Fall 2025. Upon confirmation of your learner record and progress, you will be granted complimentary access to the new program. We may be able to formally acknowledge prior learning and fast-track you through selected modules.

Option 2 – Independent Study pathway
If you successfully completed Units 1-5 of the former program, you may be eligible for an independent study option to help you complete the final components and earn your certificate. This option is available upon verification of your learner record.

To explore either option, please contact us:
oise.cpl@utoronto.ca

Option 3 – Request a Refund
For payment or refund-related concerns, please contact the former program provider:
info@pluribustechnologies.com

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Continuing & Professional Learning

Can I get a refund for the course?

All enrolment and payment processing was managed by Teach Away (Kesson Group Inc.), now operating under Pluribus Technologies, not OISE CPL. According to Teach Away's published Terms & Conditions—acknowledged at the time of registration—no refunds are issued after enrolment, regardless of whether the course was completed or paused. If you believe your circumstances are exceptional or you were affected during the provider's creditor protection process, please contact: info@pluribustechnologies.com

Why can't OISE CPL provide me a refund?

When you registered for the Teach Away TEFL Online Certificate Program, your payment was made directly to Teach Away – OISE CPL was not involved in this financial transaction. As a result, OISE CPL is not authorized to process or issue refund.

Can I still get my certificate?

Certificates may be issued where OISE CPL is able to verify completion through the learner record. If you successfully completed the program and are awaiting your certificate, please contact: oise.cpl@utoronto.ca

What happens to my learner record?

OISE CPL has securely received learner records related to the TEFL Online Certificate Program and will retain these records in accordance with University of Toronto data governance and privacy policies.

What if I didn't finish but want to complete the program in the future?

We are currently developing a renewed and enhanced TEFL Online Certificate Program, launching in Fall 2025. The new version will feature refreshed content, improved learner support, and direct administration by OISE CPL. You have two options:

1) Join our waitlist to be notified when registration opens for the new OISE CPL TEFL Online Certificate Program

2) Inquire about our independent study option if you've successfully completed Units 1-5 of the Teach Away program and would like to continue your learning now: oise.cpl@utoronto.ca

I completed the course in March/April but still haven't received my physical certificate.

We're currently experiencing a slight delay in printing and mailing out physical certificates. We appreciate your patience as we work to complete this process. In the meantime, if you haven't already received one, we'd be happy to provide you with an electronic certificate for your records.

Where can I ask more questions?

For questions about your learner record, certificate, or upcoming TEFL programs: oise.cpl@utoronto.ca

For refund or payment-related inquiries: info@pluribustechnologies.com.

TEFL Online Certificate Program – A New Chapter Begins

For over ten years, OISE Continuing and Professional Learning partnered with Teach Away to deliver the TEFL Online Certificate Program. At a time when OISE CPL didn't yet have the internal systems to run large-scale online programs, this partnership allowed us to reach learners around the world.

As technology and teaching practices continue to evolve, so do our program delivery models. With this in mind, our partnership with Teach Away has now come to a close.

What this Means for You

- The current TEFL Online Certificate Program, formerly administered in partnership with Teach Away, is no longer accepting new enrollments.
- If you enrolled on or after **April 15 2024**, and haven't finished the program, please contact us at oise.cpl@utoronto.ca.

Coming Fall 2025: A New TEFL Online Experience

We're excited to be developing a refreshed and enhanced TEFL Online Certificate Program, launching in Fall 2025. The new version will be designed and delivered directly by OISE Continuing & Professional Learning.

Join our [waitlist] to receive early updates and priority access when registration opens.

TEFL Online Certificate Program – Learner FAQs

Why is the TEFL Online Certificate Program no longer accepting enrolments?

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What if I enrolled but didn't complete the program?

OISE CPL is not continuing the TEFL Online Certificate Program previously delivered by Teach Away. We're unable to offer access or re-enrolment under the former delivery model. However, we are pleased to offer a few pathways to support your continued progress:

Option 1 – Join the new program in Fall 2025. If you completed **fewer than five units** in the previous program, we encourage you to register for the newly redeveloped TEFL Online Certificate Program launching in **Fall 2025**.

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1 Join our waitlist to be notified when registration opens for the new OISE CPL TEFL Online Certificate Program: [Insert Waitlist Link]

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- For refund or payment-related inquiries: **info@pluribustechnologies.com**

TEFL – Draft Email

Subject: TEFL – Next Steps on your Learning Journey

Hello **Name,**

Thank you for your patience over the past few weeks as we've worked through the changes affecting the TEFL program, your access, and your progress towards completion. We understand how unsettling this period has been, and we truly appreciate your understanding.

Behind the scenes, our team has been working diligently to find the best path forward. We are pleased to share that the TEFL program has now been successfully migrated into our learning management system called Quercus**.**

Should you wish to continue with the program, you will be granted access to Quercus starting **July 17, 2025**. While the platform itself may be new to you, rest assured that we will provide clear video tutorials and step-by-step instructions to help you navigate it with ease. The course content itself will remain largely the same in terms of structure and appearance.

You may now be wondering: *What's my next step?*

To help us best support your continued learning, please begin by completing the following short survey:

🔗 https://forms.office.com/r/TXi2SSN7Gr

In the survey, you'll let us know:

1. Whether you'd like to continue and complete the legacy TEFL program

2. Whether you'd prefer to wait for the new TEFL program to launch
3. Where you last left off in your TEFL learning

We kindly ask that you complete the survey by **July 11, 2025.**

For more information about the recent changes to the TEFL program and frequently asked questions, please visit: OISE TEFL Certification - OISE Continuing and Professional Learning

We're committed to supporting you every step of the way and are excited to help you move forward in your TEFL journey. Please don't hesitate to reach out should you have any question.

Best Regards,
OISE CPL